

Life Insurance Corporation of India (Staff) Regulations, 1960

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Union of India - Act

Life Insurance Corporation of India (Staff) Regulations, 1960

UNION OF INDIA

India

Life Insurance Corporation of India (Staff) Regulations, 1960

RULE LIFE-INSURANCE-CORPORATION-OF-INDIA-STAFF-REGULATIONS-1960 of 1960

Published on 23 July 1960

Commenced on 23 July 1960

[This is the version of this document from 23 July 1960.]

[Note: The original publication document is not available and this content could not be verified.]

Life Insurance Corporation of India (Staff) Regulations, 1960

Published vide Notification in Gazette of India, Part-4, dated 23.7.1960 and in force from 1.7.1960

Preamble: - Whereas it is necessary to frame Regulations defining the terms and conditions of service of the staff of the Life Insurance Corporation of India, the Corporation, in exercise of the powers vested in it under clauses (b) and (bb) of sub-section (2) of Section 49 of the Life Insurance Corporation Act, 1956, and with the previous approval of the Central Government is pleased to make the following Regulations:

Chapter - I Preliminary

1.

Short Title.

- These Regulations may be called the Life Insurance Corporation of India (Staff) Regulations, 1960.

2.

Application.

- They shall apply to every whole-time [salaried]

[Notified in Gazette of India, Part-IV dated 18.6.1966.]

employee of the Corporation [in India]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

unless otherwise provided by the terms of any contract, agreement or letter of appointment.

Explanation: "Employee" excludes insurance agents and work-charged employees whose salaries are charged to particular property/properties or work/works. In the case of a female employee "he" and "his" are to be read as "she" and "her".

3.

Definitions.

- In these Regulations, unless there is anything repugnant in the subject or context:

(a)

"Act" means the Life Insurance Corporation Act, 1956.

(b)

"Compensatory allowance" means an allowance granted to meet personal expenditure necessitated by the special circumstances in which duty is performed (e.g. fixed travelling allowance, conveyance allowance, etc.) and is payable during the period such conditions exist.

(c)

"Competent authority" means the authority specified in Schedule-IV to discharge the functions laid down in these Regulations.

(d)

"Corporation" means the Life Insurance Corporation of India.

(e)

"Insurer" in respect of a "transferred employee" shall mean the insurer in whose service the employee was working immediately prior to the Appointed Day.

(f)

"Lien" means the title of an employee to hold substantively, either immediately or on the termination of a period or periods of absence, a permanent post to which he has been appointed substantively i.e., held in a permanent capacity.

(g)

"Officiate": An employee officiates in a post when he performs the duties of a post on which another person holds a lien. The appointing authority may, if it, thinks fit appoint an employee to officiate in a vacant post on which no other employee holds a lien.

(h)

"Personal pay" means an additional pay granted

(i)

to save an employee from the loss of salary due to any reduction of salary otherwise than as disciplinary measure; or

(ii)

in exceptional circumstances, on other personal considerations.

(i)

["Salary" means the basic pay, additions to basic pay after reaching maximum of the scale of pay, dearness allowance, additional dearness allowance, special allowance payable to Class-III and Class-IV employees, functional allowance, house rent allowance, city compensatory allowance, personal allowance, special area allowance, conveyance allowance, graduation allowance, fixed personal allowance, hill allowance, special allowance for passing examinations wherever payable to Class-III employees but excludes all other allowances and overtime payments.]

[Notified in Gazette of India, Part-III Section 3 dated 22.6.2000.]

(j)

["Service" means the period spent on duty and leave including extraordinary leave.]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

(k)

"Special pay" means an addition of the nature of pay to the emoluments of a post or of an employee in consideration of

(i)
the specially arduous nature of duties; or

(ii)
specific addition to the work or responsibility.

(l)
"Transferred employee" shall mean an employee of an insurer or of a Chief Agent who was deemed to have become an employee of the Corporation on the Appointed Day under Section 11 or Section 12 of the Life Insurance Corporation Act.

All words and expressions used herein and not defined herein but defined in the Life Insurance Corporation Act, 1956 or the Insurance Act, 1938 or the Rules made under the above Acts or the Life Insurance Corporation Regulations shall have respectively the meaning assigned to them in those Acts or Rules or Regulations unless otherwise provided in the contracts.

4.

Power to implement Regulations.

- The Chairman may, from time to time, issue such instructions or directions as may be necessary to give effect to, and carry out, the provisions of these regulations and in order to secure effective control over the staff employed in the Corporation.

Chapter - II Appointments, Probation and Termination of Service

Section 1 - Appointments

5.

Classification.

- The staff of the Corporation shall be classified as follows: Class I -Officers Class II - [Development]

[Notified in Gazette of India, Part-IV dated 14.4.1962.]

Officers Class III -Supervisory and Clerical Staff Class IV -Subordinate Staff.

6.

Appointing Authority.

- Appointments including promotions shall be made by the authorities specified in this behalf in Scheduled I.

7.

Direct Recruitment & Promotions.

- [(1) All recruitment and promotions shall be made against the vacancies in sanctioned posts.]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

(2)

In making selections and promotions the appointing authority (vide Schedule I) shall be assisted by Committees herein prescribed:

(i)

[Posts belonging to Class I:

[Notified in Gazette of India, Part-II Section 3 Sub-section (i) dated 18.6.1999.]

(a)

Posts in the cadre of Zonal Managers and above or equivalent cadres - Chairman and three Officers not below the rank of Zonal Manager.

(b)

Posts in the cadres of Dy. Zonal Manager/Sr. Divisional Manager, Divisional Manager and equivalent cadres - Managing Director and three Officers not below the rank of Zonal Manager.

(c)

Posts in the cadres of Assistant Divisional Manager/Sr. Branch Manager and equivalent cadres - Three Officers not below the rank of Zonal Manager.

(d)

Posts in the cadres of Administrative Officer/Branch Manager and equivalent cadres - Three Officers not below the rank of Deputy Zonal Manager/Senior Divisional Manager.]

(e)

[Other posts in Class I - One Officer not below the rank of Dy. Zonal Manager and two officers not below the rank of

Divisional Manager to be nominated by the Central Office.]

[Notified in Gazette of India, Part-II Section 3 Sub-section (i), GSR 668(E), dated 26.10.2006.]

(ii)

Posts belonging to Class II:

One officer of the Zonal Office not below the rank of Assistant Divisional Manager and two officers not below the rank of [Administrative Officer]

[Notified in Gazette of India, Part-IV dated 8.1.1966.]

from the Divisional Office.

(iii)

Posts belonging to Class III:

(a)

[Superintendents - one officer not below the rank of a Divisional Manager and two officers not below the rank of Assistant Divisional Managers.

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

(b)

Higher Grade Assistants and Section Heads - one officer not below the rank of Assistant Divisional Manager and two officers not below the rank of [Administrative Officers.]

(c)

Assistants, Record Clerks and other similar posts - three officers not below the rank of [Administrative Officers]

[Notified in Gazette of India, Part-IV dated 8.1.1966.]

(iv)

Posts in Class IV:

One Officer not below the rank of [Administrative Officer]

[Notified in Gazette of India, Part-IV dated 8.1.1966.]

and two officers not below the rank of [Assistant Administrative Officers.]

[Notified in Gazette of India, Part-IV dated 8.1.1966.]

Provided, however, the appointing authority may nominate on the aforesaid Committees additional members if necessary.

(3)

Promotion shall be based on merit, suitability of the candidate for a particular post and seniority. Merit and suitability may be judged by confidential reports and/or interviews and/or examinations.

[Provided that for promotion of Development Officers, the Corporation may fix such criteria for determining suitability as it deems fit having regard to the duties performed by Development Officers.]

[Notified in Gazette of India, Part-III Section 4 dated 21.2.1998.]

(4)

Where an appointing authority subordinate to the Corporation is unable to accept the recommendation of the Committee it shall record in writing the reasons for disagreeing with the recommendation of the committee and pass such orders as it may deem fit.

8.

Temporary Staff.

- [(1) Notwithstanding anything contained in these Regulations, a Managing Director, Executive Director (Personnel), a Zonal Manager or a Divisional Manager may employ staff in Classes III and IV on a temporary basis subject to such general or special directions as may be issued by the Chairman from time to time.]

[Notified in Gazette of India, Part-III Section 4 dated 23.1.1971 and 7.8.1971.]

(2)

[No person appointed under sub-regulation (1) shall only by reason of such appointment be entitled to absorption in the service of the Corporation or claim preference for recruitment to any post.]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

9.

Certificate of Health.

- No person shall be appointed to the service of the Corporation unless he has been certified by a qualified medical

practitioner, approved by the Corporation, to be of sound constitution and medically fit to discharge his duties.

10.

[Age.

[Notified in Gazette of India, Extraordinary, Part-II Section 3 sub-Section (i) dated 13.12.1993 (G.S. R. No. 745).]

- The age of a person at the time of his appointment to the service of the Corporation shall not be less than 18 or more than [30 years], provided that the competent authority may relax the upper age in respect of candidates specified in Column (2) of the Table below upto the limit specified in the corresponding entry in Column (3) of the Table:]

Table

Sl. No.

Candidates

Age limit

(1)

(2)

(3)

1.

The widow of an employee who dies while in service

45 years

2.

The son or unmarried daughter of an employee who dies while in service

30 years

3.

Ex-servicemen

To the extent of the service put in the defence service as increased by 3 years, subject to a maximum of[47 years of age]

[Notified in Gazette of India, dated 23.4.1999.]

4.

Physically handicapped persons

[37 years]

[Notified in Gazette of India, dated 23.4.1999.]

5.

Members of the Scheduled Castes/Scheduled Tribes

[35 years]

[Notified in Gazette of India, Part-II section 3 sub-section (i) dated 22.5.1998.]

6. [

[Notified in Gazette of India, dated 23.4.1999.]

Other Backward Communities

33 years]

[Provided further that the Executive Director(Personnel) in respect of appointment to posts in Class-III and Class-IV, Managing Director in respect of appointment to posts in Class-II and Assistant Administrative Officer/Assistant Branch Manager in Class-I, Chairman in respect of appointment to posts in the cadre of Administrative Officer/Branch Manager or equivalent cadre and the Corporation in respect of appointment to posts in other cadres may relax or waive the limit on upper age wherever necessary.]

[Notified in Gazette of India, Part-II Section 3 sub-section (i) dated 18.6.1999.]

11.

Salary on Appointment.

- All first appointments shall be made on the minimum basic pay of the grade to which the appointment is made, [provided that the competent authority may authorise the grant of advance increments with reference to the circumstances in each case.]

[Notified in Gazette of India, Part-IV dated 18.6.1966.]

12.

[Reappointment.

[Notified in Gazette of India, Extraordinary, Part-II section 3 sub-section (i) dated 13.12.1993 (G.S.R. No. 745).]

(1)

No person who has been dismissed from the service of the Corporation shall be re-employed.

(2)

[A person whose services have been terminated otherwise than by way of dismissal may be reemployed with the prior sanction of the Executive Committee in the case of appointments to posts belonging to Class-I and of the Chairman in the case of appointments to posts belonging to Class-II, III & IV.]

Provided that where the appointing authority specified in Schedule-I is the Executive Committee or the Chairman, as the case may be, the said authority, and in any other case, with the prior approval in writing of the Managing Director, the appointing authority to the post may re-employ a person who has resigned from service.]

13.

Commencement of Service.

- Except as otherwise provided by or under these Regulation, "service" of an employee shall be deemed to commence from the working day on which an employee reports for duty in an appointment covered by these Regulations at the place and time intimated to him by the appointing authority, provided that he reports before noon, otherwise his service shall commence from the following day.

Explanation: In the case of a "transferred employee" his "service" shall be deemed to have commenced from the date on which his service commenced with the insurer.

Section 2 - Probation

14.

Probation.

(1)

Persons appointed to posts belonging to Classes I & II shall, on the first appointment in the Corporation's service, be required to be on probation for a period of one year from the date of appointment.

(2)

Persons appointed to posts belonging to Classes III & IV shall, on the first appointment in the Corporation's service, be required to be on probation for 6 months.

(3)

Subject to the provisions of any law for the time being in force the appointing authority may, at its discretion, dispense with, reduce or extend the probationary period, but in no case shall the total period of probation exceed -

(a) In case of employees belonging to Classes I & II.

Two years.

(b) In other cases.

One year.

[Provided that the period of probation shall not be reduced of more than the period of training of an employee, falling under Clause (b), subsequent to his selection for appointment to the service of the Corporation.]

[Notified in Gazette of India, Extraordinary, Part-II section 3 sub-section (i) dated 13.12.1993 (G.S.R. No. 747).]

(4)

During the period of probation an employee shall be liable to be discharged from service without any notice.

15.

[Temporary Service in lieu of Probation.

[Notified in Gazette of India, Extraordinary, Part-II Section 3 sub-section (i) dated 13.12.1993 (G.S.R. No. 747).]

- Deleted.]

16.

[Probation on Promotion.

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

(1)

An employee promoted to a higher post shall be treated as on probation in the higher post for a period of one year in the case of promotions to posts belonging to Classes I and II and 6 months in other cases. Provided, however, that the competent authority may in its discretion extend the period of probation, but in no case shall the total period of probation

exceed -

(a)

in the case of promotions to posts belonging to Classes I & II 2 Years.

(b)

in other cases 1 year.

(2)

An employee on probation shall be liable to be reverted without notice at any time.

(3)

During the period of probation an employee retains his lien on his lower post and the period shall count as permanent service for all purposes.]

17.

[Officiating Arrangement.

[Notified in Gazette of India, Part-III Section 4 dated 23.1.1971 and 7.8.1971.]

(1)

Notwithstanding anything contained in Regulation 7, the competent authority may at its discretion appoint an employee to officiate in a vacancy in a sanctioned post in a higher cadre.

(2)

No person appointed to officiate under sub-regulation (1) shall by virtue of such appointment be entitled to any claim for promotion or for any increment in the higher scale.

(3)

An employee appointed to officiate in higher post shall be liable to be reverted without notice during the officiating period.]

Section 3 - Termination

18.

Determination of Service.

(1)

An employee, other than an employee on probation or an employee appointed on a temporary basis, shall not leave or discontinue his service in the Corporation without first giving notice in writing to the competent authority of his intention to leave or discontinue the service. The period of notice required shall be

(a)

three months in the case of an employee belonging to Class I;

(b)

one month in the case of other employees.

Provided that such notice may be waived in part or in full by the competent authority at its discretion.

In case of breach by an employee of the provisions of the sub-regulation, he shall be liable to pay the Corporation as compensation a sum equal to his salary for the period of notice required of him, which sum may be deducted from any moneys due to him.

(2)

The Chairman, the [Executive Committee]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

or the Corporation may determine the service of any [permanent]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

employee at any time on giving him

(a)

three month's notice or salary in lieu thereof if he is an employee in Class I; and

(b)

one month's notice or salary in lieu thereof if he is an employee in any other class.

Provided, however, that the period of notice will be doubled in the case of employees who have served for 10 years or more.

Provided further that no order under this regulation shall be made by an authority subordinate to the appointing authority.

(3)

Nothing contained in this regulation shall affect the right of the appointing authority to retire, discharge, remove or dismiss an employee without notice or salary in lieu thereof in accordance with the provisions of Regulation 39 [or to terminate the services of any employee belonging to Class II in accordance with the provisions contained in Schedule III.]

[Notified in Gazette of India, Part-III Section 4 dated 22.4.1976.]

Explanations: 1. The expression "month" used in this regulation shall be reckoned according to the English calendar and shall commence from the day following that on which notice is received by the Corporation or the employee as the case may be.

2. A notice given by an employee under sub-regulation (1) above shall be deemed to be proper only if he remains on duty during the period of the notice, and an employee shall not be entitled to set off any leave earned against the period of such notice.

19.

Superannuation and Retirement.

- [(1) An employee belonging to Class III or Class IV and a transferred employee belonging to Class I or Class II shall retire on completion of age 60; but the competent authority may, if it is of the opinion that it is in the interest of the Corporation to do so, direct such employee to retire on completion of 55 years of age or at any time thereafter, on giving him three months' notice or salary in lieu thereof.

Provided that an employee who is a member of any approved superannuation fund, as defined in clause (a) of Section 58-N of the Indian Income tax Act, 1922 and which has been recognised and allowed to be continued by the Corporation, shall be permitted upon request to retire before the date of retirement specified in this sub-regulation either (a) on completion of 25 years of service or (b) on completion of 20 years of service, provided he has reached age 50 or (c) on completion of 20 years of service if he is incapacitated for further active service. (see note)]

[Notified in Gazette of India, Part-III Section 4 dated 21.1.1977.]

(2)

[An employee belonging to Class I or Class II appointed to the service of the Corporation on or after 1st September, 1956, shall retire on completion of [60 years]

[Notified in Gazette of India, Part-III Section 4 dated 21.1.1977.]

of age, but the competent authority may, if it is of the opinion that it is in the interest of the Corporation to do so, direct such employee to retire on completion of 50 years of age or at any time thereafter on giving him three months' notice or salary in lieu thereof.]

Explanations : [1. Where an employee is directed by the competent authority to retire as aforesaid, it shall not be deemed to be a penalty under Regulation 39 or any other provisions.]

[Notified in Gazette of India, Part-III Section 4 dated 21.1.1977.]

2. [Notwithstanding anything contained in sub-regulation (1) and (2) above, the appointing authority may direct an employee to avail of the full privilege leave to his credit before the date of his retirement as prescribed in the said sub-regulations.]

[Notified in Gazette of India, Part-III Section 4 dated 10.5.1980.]

3. [In forming the opinion as aforesaid the competent authority shall have regard to the recommendations of a committee constituted for the purpose and consisting of one officer not below the rank of Zonal Manager and two officers not below the rank of Deputy Zonal Manager/Senior Divisional Manager in respect of employees belonging to Class II, III, IV and employees in the cadres of Assistant.

Administrative Officer/Asstt. Branch Manager and Administrative Officer/Branch Manager or equivalent cadres, and in respect of other employees by a committee consisting of three officers not below the rank of officers specified for a committee under sub-regulation (2) of Regulation 7, as appropriate to the cadre to which the employee belongs". (see note on next page)]

[Notified in Gazette of India, Part-II Section 3 Sub-Section (i) dated 13.12.1993.]

(2A)

[(a) Notwithstanding what is stated in sub-rules (1) and (2) above, an employee may be permitted to retire at any time on completion of the age 55 after giving three months notice in writing to the appointing authority of his intention to retire.

(b)

(i)

Notwithstanding the provisions of Clause (a), an employee governed by the Life Insurance Corporation of India (Employees) Pension Rules, 1995 may be permitted to retire at any time after he has completed twenty years of qualifying service, by giving notice of not less than ninety days, in writing, to the appointing authority:

Provided that this sub-clause shall not apply to an employee who is on deputation unless after having been transferred or having returned to India, he has resumed charge on the post in India and has served for a period of not less than one year:

Provided further that this sub-clause shall not apply to an employee who seeks retirement from service for being absorbed permanently in an autonomous body or a public sector undertaking to which he is on deputation at the time of seeking voluntary retirement.]

[Notified in Gazette of India, Extraordinary, Part-II Section 3 Sub-Section (i) dated 16.2.1996.]

(ii)

The notice of voluntary retirement given under sub-clause (i) of clause (b) shall require acceptance by the appointing authority:

Provided that where the appointing authority does not refuse to grant the permission for retirement before the expiry of the period specified in the said notice, the retirement shall become effective from the date of expiry of the said period.

(iii)

(A)

An employee referred to in sub-clause (1) may make a request in writing to the appointing authority to accept notice of voluntary retirement of less than ninety days giving reasons therefor;

(B)

On receipt of such a request, the appointing authority may, subject to the provisions of sub-clause (ii) of clause (b), consider such request for the curtailment of the period of notice of ninety days on merits and if it is satisfied that the curtailment of the period of notice will not cause any administrative inconvenience, the appointing authority may relax the requirement of such notice.

(iv)

An employee, who has elected to retire under this rule and has given necessary notice to that effect to the appointing authority, shall be precluded from withdrawing his notice except with the specific approval of such authority:

Provided that the request for such withdrawal shall be made before the intended date of his retirement.

(C)

Notwithstanding anything contained in clause (a) or clause (b), it shall be open to the appointing authority to withhold permission to an employee who is under suspension or against whom a disciplinary proceeding in respect of a misconduct or a judicial proceeding in respect of an offence in a court of law is pending, or as the case may be, under investigation or trial and who seeks to retire under this sub-rule.

(3)

Nothing contained in the foregoing sub-regulations shall affect the right of the appointing authority to retire an employee without notice or pay in lieu thereof on his being certified by a medical examiner, to be nominated for the purpose by the appointing authority, as being incapacitated for further continuous service either due to continued illness or accident.

(4)

[Notwithstanding anything contained in clauses (c) of regulation 61, where an employee has to his credit privilege leave earned but not availed of as on the date of retirement in accordance with the foregoing sub-regulations, he may be paid a lump sum which shall be equal to the salary for such leave to his credit, [subject to maximum of 240 days, calculated]

[Notified in Gazette of India, Part-III Section 4 dated 10.5.1980.]

at the rate at which he drew salary immediately preceding the date of his retirement, but excluding City Compensatory Allowance, house rent allowance and functional allowance.]

[Provided (deleted)]

[Notified in Gazette of India, Extraordinary, Part-II Section 3 Sub-Section (i) dated 30.6.1995.]

[Provided (deleted)]

[Notified in Gazette of India, Extraordinary, Part-II Section 3 Sub-Section (i) dated 4.10.1990.]

Explanation: For the removal of doubts it is clarified that the period for which lump sum payment is allowed as aforesaid shall not be treated as period spent in the service of the Corporation and the benefit of gratuity or provident fund shall

not be allowed for the period.

Note: Where an employee is to retire on attaining superannuation age, he shall retire with effect from the afternoon of the last day of the month in which he attains the superannuation age (vide Life Insurance Corporation of India (Regulation of Superannuation) Rules, 1987 (G.S.R. No. 507(E) dated 15.5.1987).

Chapter - III Conduct, Discipline and Appeals

20.

Scope of an Employee's Service.

- Unless in any case it be otherwise distinctly provided, the whole time of an employee shall be at the disposal of the Corporation and he shall serve the Corporation in its business in such capacity and at such place as he may, from time to time, be directed.

21.

Liability to abide by the Regulations.

- Every employee of the Corporation shall at all times maintain absolute integrity and devotion to duty, shall conform to and abide by these Regulations and shall observe, comply with and obey all orders and directions which may, from time to time, be given to him in the course of his official duties by any person or persons under whose jurisdiction, superintendence or control he may, for the time being, be placed.

22.

Obligation to maintain Secrecy.

- No employee shall, while in service or after his retirement, resignation or discharge, except in accordance with any general or special order of his superior officers or Corporation or in performance, in good faith, of the duties assigned to him, communicate directly or indirectly any official documents or information to any employee or any other persons to whom he is not authorised to communicate such document or information.

23.

Evidence before Committee or any other Authority.

(1)

Save as provided in sub-regulation (3) below, no employee shall, except with the previous sanction of the competent authority, give evidence in connection with any inquiry conducted by any person, committee or authority.

(2)

Where any sanction has been accorded under sub-regulation (1) no employee giving such evidence shall criticise the policy or any action of the Corporation or of the Government.

(3)

Nothing in this regulation shall apply to

(a)

evidence given at an inquiry before an authority appointed by the Government, by Parliament or by a State Legislature or Corporation: or

(b)

evidence given in any judicial inquiry; or

(c)

evidence given at any departmental inquiry ordered by the Corporation or by any authority subordinate to it or by the Government.

24.

Employees to promote the Corporation's interest.

- Every employee shall serve the Corporation honestly and faithfully and shall use his utmost endeavours to promote the interest of the Corporation and shall show courtesy and attention in all transactions.

25.

Prohibition against participation in Politics and standing for Election.

- [(1)]

[Deleted in pursuance to the Supreme Court decision (AIR 1331 of 1975).]

(2)

It shall be the duty of every employee to endeavour to prevent any member of his family from taking part in, subscribing in aid of or assist in any other manner any movement which tends directly or indirectly to be subversive of the Life

Insurance Corporation or of the Government as by law established, and where an employee is unable to prevent a member of his family from taking part in, or subscribing in aid of, or assisting in any other manner, any such movement or activity, he shall make a report to that effect to the Corporation.

Explanation: For purpose of the regulations in this chapter "members of the family" in relation to an employee include

(i)
the wife, child or step-child or such employee whether residing with him or not, and in relation to an employee who is a woman, the husband residing with her and dependent on her; and

(ii)
any other persons related, whether by blood or by marriage, to the employee or to such employee's wife or husband and wholly dependent on such Corporation employee;
but does not include a wife or husband legally separated from the employee, or child or step-child who is no longer in any way dependent upon him or her or of whose custody the employee has been deprived by law;

(3)
If any question arises whether any movement or activity falls within the scope of this regulation the decision of the Corporation thereon shall be final [under these regulations.]

[Notified in Gazette of India, Extraordinary, Part-II section 3 sub-section (i) dated 13.12.1993.]

(4)
No employee shall [...]
[Deleted in pursuance to the Supreme Court decision (AIR 1331 of 1975).]
take part in an election to any legislature or local authority.

Provided that

(i)
an employee qualified to vote at such election may exercise his right to vote but, where he does so, he shall give no indication of the manner in which he proposes to vote or has voted;

(ii)
an employee shall not be deemed to have contravened the provisions of this regulation by reason only that he assists in the conduct of an election in the due performance of a duty imposed on him by or under any law for the time being in force;

(iii)
[.....]
[Omitted vide notification dated 03.03.2008, Part II, Section 3(ii), (G.S.R. No. 160(E))]

Explanation: The display by an employee on his personal vehicle or residence of any electoral symbol shall amount to using his influence in connection with an election within the meaning of this sub-regulation.

25A.

Participation in Demonstration.

- [No officer of the Corporation shall engage himself or participate in any demonstration which involves incitement to an offence nor shall he resort to or abet any form of strike.]

[Notified in Gazette of India, Part-IV dated 11.9.1965.]

26.

Connection with Press and Radio.

(1)
No employee shall, except with the previous sanction of the Corporation, own wholly or in part, or conduct or participate in the editing or managing of any newspaper or other periodical publication.

(2)
No employee shall, except with the previous sanction of the [Chairman or any other authority empowered by him]
[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

in this behalf, or in the bona fide discharge of his duties, participate in a radio broadcast or contribute any article or write any letter either anonymously or in his own name or in the name of any other person to any newspaper or periodical.

Provided that no such sanction shall be required if such broadcast or such contribution is [occasional and is]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

of a purely literary, artistic or scientific character.

Provided further that this regulation will not apply to any statement to the press made by office-bearers of a registered Trade Union of the employees in any matter which is of the nature of a trade dispute and does not contravene the provision of Regulation 22.

27.

Private Trading.

(1)

No employee or class of employee shall, except with the approval of the Corporation, engage directly or indirectly in any trade or business.

(2)

No employee shall, except with the previous sanction of the Corporation, take part in the registration, promotion or management of any bank or other company registered under the Indian Companies Act or any other law for the time being in force.

[Provided that an employee may take part in the registration, promotion or management of Cooperative Societies under Co-operative Societies Act or any other law for the time being in force, which have been formed mainly by the employee of the Corporation and for their benefit]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

28.

Employees not to seek outside Employment.

- No employee shall accept, solicit or seek any outside employment or office whether stipendiary or honorary, without the previous sanction of the competent authority.

29.

Part-time Work.

- No employee shall undertake part-time work for a private or public body or a private person or accept fee therefor without the sanction of the competent authority which shall grant sanction only in exceptional cases when it is satisfied that the work can be undertaken without detriment to his official duties and responsibilities. The competent authority may, in cases in which it thinks fit to grant such sanction, stipulate that any fees received by the employee for undertaking the work shall be paid, in whole or part to the Corporation.

[Provided that no employee of the Corporation shall be permitted to act as an insurance agent and no employee shall allow his/her spouse and dependent children or dependent step-children, whether residing with him/her or not, to act as an insurance agent.]

[Notified in Gazette of India, Part-II Section 3 dated 13.05.2010 (GSR No. 401(E)).]

30.

Employees not to be Absent from Duty without permission or be Late in Attendance.

(1)

An employee shall not absent himself from his duties without having obtained the permission of the competent authority, nor shall he absent himself in case of sickness or accident without submitting a medical certificate satisfactory to the competent authority.

Provided that in case of unforeseen emergency an employee may be allowed to avail of one day's casual leave without prior sanction, subject to the condition that the competent authority is promptly advised of the circumstances in which prior sanction could not be obtained.

Provided further that in the case of temporary indisposition the production of a medical certificate may, at the absolute discretion of the competent authority, be dispensed with.

(2)

[an employee who absents himself from duty without leave or overstays his leave shall not be entitled to draw any pay and allowances during such absence or overstayal, and shall further be liable to such disciplinary measures as the competent authority may deem necessary. Provided, however, that the competent authority may treat such period of absence or overstayal, if not followed by termination of service, as period spent on privilege, sick, special or extraordinary leave, but the employee shall not be entitled as of right to such treatment. Provided further that notwithstanding anything contained in Regulation 65 the competent authority may treat such absence or overstayal as period spent on extraordinary leave irrespective of whether the employee has any other leave to his credit or not.]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

(3)

An employee who is habitually late in attendance shall, in addition to such other penalty as the competent authority may deem fit to impose, have one day of casual leave forfeited for every three days he is late in a month. Where such an employee has no casual leave due to him, the period of leave to be so forfeited may be treated as privilege or extraordinary leave as the competent authority may determine.

Explanation: The competent authority may, as its absolute discretion, condone late attendance by any employee up to two days in a month, provided the circumstances under which the employee had to attend late were beyond his control and in that case such late attendance will not be taken into consideration for debiting the casual leave account in accordance with sub-regulation (3).

31.

Absence from Station.

- No employee shall absent himself from his station overnight, except on duty, without the prior sanction of the competent authority.

32.

Acceptance of Gifts.

(1)

No employee shall, except with the sanction of the Chairman, accept or permit his wife or any other member of his family to accept from any person any gift of more than a trifling value.

(2)

If the question arises whether any gift is of a trifling value or not, or where an employee is in any doubt whether a gift offered to him is of a trifling value or not a reference shall be made to the Chairman by such employee and the decision of the Chairman thereon shall be final [under these regulations]

[Notified in Gazette of India, Extraordinary, Part-II Section 3 sub-section (i) dated 13.12.1993 (G.S.R. No. 745(E))]

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33.

Speculation in Stocks, Shares, etc.

(1)

No employee shall speculate in any investment.

Explanation: Habitual purchase or sale of securities of notoriously fluctuating values shall be deemed to be speculation in investment within the meanings of this sub-regulation.

(2)

No employee shall make or permit his wife or any member of his family to make an investment likely to embarrass or influence him in the discharge of his duties.

(3)

If any question arises whether a security or investment is of the nature referred to in sub-regulation (1) or sub-regulation (2), the decision of the Corporation shall be final [under these regulations]

[Notified in Gazette of India, Extraordinary, Part-II Section 3 Sub-Section (i) dated 13.12.1993 (G.S.R. No. 745(E))]

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34.

Restrictions on Borrowing and Investments.

(1)

No employee shall, except with the previous sanction of the competent authority, lend money to any person possessing land or valuable property within the local limits of his authority, or on interest to any person.

Provided that an employee may make an advance of pay to a private servant or give a loan of small amount free of interest to a personal friend or relative, even if such person possesses land within the local limits of his authority.

(2)

No employee shall, save in the ordinary course of business with a bank or a firm of standing, borrow money from or otherwise place himself under pecuniary obligation to any person within the local limits of his authority, or any other person with whom he is likely to have official dealings, nor shall he permit any member of his family, except with the previous sanction of the competent authority, to enter into any such transaction.

Provided that an employee may accept a purely temporary loan of small amount, free of interest, from a personal friend

or relative or operate a credit account with a bona fide tradesman.

35.

Employees in Debt.

- An employee shall so manage his private affairs as to avoid habitual indebtedness or insolvency. An employee who is in debt shall furnish to the competent authority a signed statement of his position half-yearly on the 30th June and 31st December, and shall indicate in the statement the steps he is taking to rectify his position. An employee who makes a false statement under this regulation or who fails to submit the prescribed statement or appears unable to liquidate his debts within a reasonable time or applies for the protection of an insolvency court shall be liable to [disciplinary action.]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

Explanation: 1. For the purpose of this regulation an employee shall be deemed to be in debt if his total liabilities exclusive of those which are fully secured or those taken from the Employees' Co-operative Credit Society exceed his salary for 6 months.

2. An employee shall be deemed to be unable to liquidate his debts within a reasonable time if it appears, having regard to his personal resources and unavoidable current expenses, that he will not cease to be in debt within a period of three years.

35A.

[Filing Of Returns Of Property.

[Notified in Gazette of India, Extraordinary, Part-II Section 3 sub-section (i) dated 19.9.1995 (G.S.R. No. 644E)]

(1)

No employee of the Corporation shall except with the previous knowledge of the competent authority, acquire or accept either in his name or in the name of any member of his family, any immovable property or any interest therein by lease, mortgage, purchase, sale, gift or otherwise or dispose of the same in any manner.

(2)

No employee of the Corporation shall, except with the previous sanction of the competent authority, enter into any transaction concerning any immovable or movable property with a person or a firm with whom he has or had official dealings.

(3)

[Every employee of the Corporation shall, immediately report to the competent authority every transaction in respect of any movable asset if the value of such asset exceeds two months' basic pay of the employee.]

(4)

Commencing from first day of April 1995, a person holding any posts in Class I, Class II or Class III shall submit once in every year, return of assets and liabilities in such a form as may be prescribed and duly verified by him as to:

(a)

any immovable property accepted or acquired by him by any of the modes specified in sub-regulation (1) or owned or inherited by him or held in his name or in the name of any member of his family or of any other person;

(b)

shares, debentures or other securities or cash including bank deposits inherited, owned or similarly accepted or acquired by him or held in his name;

(c)

[any other asset inherited, owned or similarly accepted or acquired by him or held in his name or in the name of any member of his family, where value of such asset as on date of submission of the return exceeds two months' basic pay of the employee; and.]

[Substituted 'other movable property inherited, owned or similarly accepted or acquired by him or held in his name or in the name of any member of his family, where value of such property as on the date of submission of the return exceeds Rs. 10,000/-; and' by Notification No. G.S.R. 282 (E), dated 23.3.2017 (w.e.f. 1.7.1960).]

(d)

the debts or other liabilities incurred by him directly or indirectly:

Provided that the competent authority may for reasons to be recorded direct an employee in Class IV to submit a return of his assets and liabilities for any one or more years in which case all the provisions of this Sub-Regulation shall apply to him as they apply to an employee in Class I or Class II or Class III.

(5)

The return specified in sub-regulation (4) shall be, in the case of first appointment, in respect of the assets and liabilities as on the date of appointment shall be submitted not later than one month from the date on which he is appointed in service.

Explanation: For the purpose of this Regulation the competent authority shall be the appointing authority of the post to which the employee belongs, as specified in Schedule I appended to the Life Insurance Corporation of India (Staff) Regulations, 1960.]

36.

Suspension.

(1)

The appointing authority or any authority to which it is subordinate or any other authority empowered in that behalf (vide Schedule IV) may place an employee under suspension -

(a)

where a disciplinary proceeding against him is contemplated or is pending; or

(b)

where a case against him in respect of any criminal offence is under investigation or trial.

(2)

An employee who is detained in custody, whether on a criminal charge or otherwise, for a period exceeding 48 hours shall be deemed to have been suspended with effect from the date of detention, by an order of the appointing authority, and shall remain under suspension until further orders.

(3)

Where a penalty of dismissal, removal or compulsory retirement from service imposed upon an employee under suspension is set aside on appeal or on review under these rules and the case is remitted for further inquiry or action or with any other directions, the order of his suspension shall be deemed to have continued in force on and from the date of the original order of dismissal, removal or compulsory retirement and shall remain in force until further orders.

(4)

Where a penalty of dismissal, removal or compulsory retirement from service imposed upon an employee is set aside or declared or rendered void in consequence of or by a decision of a court of law and the disciplinary authority, on consideration of the circumstances of the case, decides to hold a further inquiry against him on the allegations on which the penalty of dismissal, removal or compulsory retirement was originally imposed, the employee shall be deemed to have been placed under suspension by the appointing authority from the date of the original order of dismissal, removal or compulsory retirement and shall continue to remain under suspension until further orders.

[Provided that no such further enquiry shall be held unless it is intended to meet a situation where the Court has passed an order purely on technical grounds without going into the merits of the case.]

[Notified in Gazette of India, Extraordinary, Part-II Section 3 Sub-Section (i) dated 13.12.1993 (G.S.R. No. 745(E))]

(5)

An order of suspension made or deemed to have been made under this regulation may at any time be revoked by the authority which made or is deemed to have made the order or by any authority to which that authority is subordinate.

37.

[Subsistence Allowance.

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

- An employee under suspension shall be entitled to subsistence allowance as specified hereunder:

(a)

Where the enquiry is domestic, for the first 90 days of suspension, 50% of the salary which the employee would have drawn had he been on privilege leave; 75% of the salary thereafter.

Provided that where such enquiry is prolonged beyond a period of 90 days for reasons directly attributable to the employee, the subsistence allowance shall, for the period exceeding 90 days, be reduced to ¼th of such salary.

(b)

Where the enquiry is conducted by an outside agency, for the first 180 days of suspension, 50% of the salary he would have drawn had he been on privilege leave; 75% of the salary thereafter.

Provided that where such enquiry is prolonged beyond a period of 180 days for reasons directly attributable to the employee, the subsistence allowance shall, for the period exceeding 180 days, be reduced to ¼th of such salary.]

38.

Treatment of the Period of Suspension.

- When the suspension of an employee is held to be unjustified or not wholly justified; or when an employee who has been dismissed, removed or suspended is reinstated, the disciplinary, appellate, or reviewing authority, as the case may be whose decision shall be final, [under these regulations]

[Notified in Gazette of India, Extraordinary, Part-II Section 3 Sub-Section (i) dated 13.12.1993.]

may grant to him for the period of his absence from duty -

(a)

if he is honourably acquitted, the full pay and allowances which he would have been entitled to if he had not been dismissed, removed or suspended, less the subsistence allowance;

(b)

if otherwise, such proportion of pay and allowance as the disciplinary, appellate or reviewing authority may prescribe.

In a case falling under clause (a), the period of absence from duty will be treated as a period spent on duty. [In a case falling under clause(b), the period of absence shall not be treated as a period spent on duty, but the disciplinary, appellate or the reviewing authority may, at its discretion, grant leave for the period to the extent admissible to the employee under the rules; any period of absence which has not been treated as period spent on duty or on leave shall not count as service for any purpose under these Regulations but will not constitute break in service.]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

No order passed under this regulation shall have the effect of compelling any employee to refund the subsistence allowance payable under regulation 37.

39.

Penalties.

(1)

Without prejudice to the provisions of other regulations, [any one or more of]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

the following penalties for good and sufficient reasons, and as hereinafter provided, be imposed [by the disciplinary authority specified in Schedule-I]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

on an employee who commits a breach of regulations of the Corporation, or who display negligence, inefficiency or indolence or who knowingly does anything detrimental to the interest of the Corporation, or conflicting with the instructions or who commits a breach of discipline, or is guilty of any other act prejudicial to good conduct -

(a)

Censure;

(b)

[Withholding of one or more increments either permanently or for a specified period;]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

(c)

recovery from pay or such other amount as may be due to him of the whole or part of any pecuniary loss caused to the Corporation by negligence or breach of order;

(d)

reduction to a lower service, or post, or to a lower time scale, or to a lower stage in a time-scale;

(e)

compulsory retirement;

(f)

removal from service which shall not be a disqualification for future employment;

(g)

dismissal.

(2)

[No order imposing on an employee any of the penalties specified in clauses (b) to (g) of sub-regulation (1) supra, shall be passed by the disciplinary authority specified in Schedule I without the charge or charges being communicated to him in writing and without his having been given a reasonable opportunity of defending himself against such charge or

charges and of showing cause against the action proposed to be taken against him.]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

(3)

The disciplinary authority empowered to impose any of the penalties, (b), (c), (d), (e), (f) or (g) may itself enquire into such of the charges as are not admitted or if it considers it necessary so to do, appoint a board of enquiry or an enquiry officer for the purpose.

(4)

Notwithstanding anything contained in sub-regulations (1) and (2) above -

(i)

where a penalty is imposed on an employee on the grounds of conduct which had led to a conviction on a criminal charge; or

(ii)

where the authority concerned is satisfied, for reasons to be recorded in writing, that it is not reasonably practicable to follow the procedure prescribed in this regulation; or

(iii)

[where an employee has abandoned his post, the disciplinary authority may consider the circumstances of the case and pass such orders thereon as it deems fit.]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

[Explanations: 1. For the purpose of this regulation, an employee shall be deemed to have abandoned his post if he absents himself from duty without leave or overstays his leave for a continuous period of ninety days without any intimation therefor in writing.

2. All communications under this regulation and copies of orders passed thereunder may be delivered personally to the employee if he is attending office; otherwise they shall be sent by registered post to the address noted in the service record. Where such communications or copies of orders cannot be served on him personally or by registered post, copies thereof shall be affixed on the notice board of the office in which the employee is employed, and on such affixing such communications and orders shall be deemed to have been properly served on him.]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

40.

[Right of Appeal.

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

- Every employee shall have a right of appeal to the appellate authority specified in Schedule I against an order imposing upon him any of the penalties specified under Regulation 39. An appeal against an order of suspension passed under Regulation 36 shall lie to the authority to which the authority which made or is deemed to have made the order of suspension is immediately subordinate. Notwithstanding anything contained in this regulation and subject to the provisions of the Life Insurance Corporation Act, Rules and Regulation no appeal [to the Corporation] shall lie against an order made by the Corporation under Regulation 36 or Regulation 39.]

41.

Period of Limitation for Appeals.

- No appeal under this chapter shall be entertained unless it is submitted within a period of three months from the date on which the appellant receives a copy of the order appealed against.

Provided that the appellate authority may entertain the appeal after the expiry of the said period if it is satisfied that the appellant had sufficient cause for not submitting the appeal in time.

42.

Form and Contents of Appeal.

(1)

Every person submitting an appeal shall do so separately and in his own name.

(2)

The appeal shall be addressed to the authority to whom the appeal lies, shall contain all material statements and arguments on which the appellant relies, shall not contain any disrespectful or improper language and shall be complete in itself.

43.

Submission of Appeals.

- Every appeal shall be submitted through the authority which made the order appealed against. Provided further that a copy of the appeal may be submitted direct to the appellate authority.

44.

Withholding of Appeals.

(1)

The authority which made the order appealed against may withhold the appeal if -

(i)

it does not comply with any of the provisions of Regulation 42; or

(ii)

it is not submitted within the period specified in Regulation 41 and no cause is shown for the delay; or

(iii)

it is a repetition of an appeal already decided and no new facts or circumstances are adduced.

Provided that an appeal withheld under this sub-regulation shall be returned to the appellant and if resubmitted within one month thereof after complying with the provisions of Regulation 42 shall not be withheld.

(2)

Where an appeal is withheld the appellant shall be informed of the fact and the reasons therefor.

(3)

At the commencement of each quarter a list of the appeals withheld by any authority during the previous quarter, together with the reasons for withholding them, shall be furnished by that authority to the appellate authority.

45.

Transmission of Appeals.

(1)

The authority which made the order appealed against shall, without any avoidable delay, transmit to the appellate authority every appeal which is not withheld under Regulation 44 together with its comments thereon and the relevant records.

(2)

The authority to which the appeal lies may direct transmission to it of any appeal withheld under Regulation 44 and thereupon such appeal shall be transmitted to that authority together with the comments of the authority withholding the appeal and the relevant records.

46.

Consideration of Appeals.

(1)

In the case of an appeal against an order of suspension, the appellate authority shall consider whether in the light of the provisions of Regulation 36 and having regard to the circumstances of the case the order of suspension is justified or not and confirm or revoke the order accordingly.

(2)

In the case of an appeal against an order imposing any of the penalties specified in Regulation 39, the appellate authority shall consider

(a)

whether the procedure prescribed in these Regulations has been complied with, and if not, whether such non-compliance has resulted in failure of justice;

(b)

whether the findings are justified; and

(c)

whether the penalty imposed is excessive, adequate or inadequate, and pass orders -

(i)

setting aside, reducing, confirming or enhancing the penalty; or

(ii)

remitting the case to the authority which imposed the penalty or to any other authority with such direction as it may deem fit in the circumstances of the case.

Provided that -

- (i)
the appellate authority shall not impose any enhanced penalty which neither such authority nor the authority which made the order appealed against is competent in the case to impose;
 - (ii)
no order imposing an enhanced penalty shall be passed unless the appellant is given an opportunity of making any representation which he may wish to make against such enhanced penalty; and
 - (iii)
if the enhanced penalty which the appellate authority proposes to impose is one of the penalties in clauses (b) to (g) of Regulation 39, and an inquiry under the said Regulation has not already been held in the case, the appellate authority shall itself hold such inquiry or direct that such inquiry be held and thereafter on consideration of the proceedings of such inquiry and after giving the appellant an opportunity of making any representation which he may wish to make against such penalty, pass such orders as it may deem fit.
- (3)
All appeals should be disposed of as expeditiously as possible and in any event not later than 6 months from the date of receipt of the appeal by the appellate authority.

47.

Appeals against other Orders.

- (1)
An employee may appeal against an order which -
- (a)
denies or varies to his disadvantage his salary or other conditions of service as regulated by any orders, regulations, rules or agreements; or
 - (b)
interprets to his disadvantage the provisions of any such orders, regulations, rules or agreements, to the Corporation if the order is passed by the authority which made the orders or regulations or rules or agreements, as the case may be, or by any authority to which such authority is subordinate, and to the authority which made such orders or regulations or rules or agreements if the order is passed by any other authority.
- (2)
An appeal against an order -
- (a)
stopping an employee at the efficiency bar in the time-scale on the ground of his unfitness to cross the bar;
 - (b)
determining the salary and allowance for the period of suspension to be paid to an employee on his reinstatement or determining whether or not such period shall be treated as period spent on duty for any purpose, shall lie to the authority to whom an appeal against an order imposing upon him the penalty of dismissal from service would lie.
- (3)
An appeal against an order passed under Regulation 18(2) shall lie to the Corporation.
- (4)
In the case of an appeal under this regulation, the appellate authority shall consider all the circumstances of the case and pass such orders as it deems just and equitable.

48.

Review.

- (1)
Notwithstanding anything contained in these Regulations, the Corporation may, on its own motion or otherwise, after calling for the records of the case, review any order which is made or is appealable under these regulations, and -
- (a)
confirm, modify or set aside the order;
 - (b)
impose any penalty or set aside, reduce, confirm or enhance the penalty imposed by the order;
 - (c)

remit the case to the authority which made the order or to any other authority directing such further action or inquiry as it considers proper in the circumstances of the case; or

(d)

pass such other orders as it deems fit.

Provided that an order imposing or enhancing a penalty shall not be passed unless the person concerned has been given an opportunity of making any representation which he may wish to make against such enhanced penalty.

(2)

The authority to which an appeal against an order imposing any of the penalties specified in Regulation 39 lies may, of its own motion or otherwise, call for the records of the case in a disciplinary proceeding, review any order passed in such a case and pass such orders as it deems fit, as if the employee had preferred an appeal against such order.

Provided that an order imposing or enhancing a penalty shall not be passed unless the person concerned has been given an opportunity of making any representation which he may wish to make against such enhanced penalty.

Provided further that no action under this sub-regulation shall be initiated more than six months after the date of the order to be reviewed.

(3)

[The Managing Director or the Chairman may on his own motion or otherwise call for the records of the case of any employee in any proceedings pending before any disciplinary or appellate authority subordinate to him, and remit the case to any authority in any office who, if the employee had been working in that office would have adequate disciplinary powers to deal with the case, with such direction as the Chairman or the Managing Director may deem fit in the circumstances of the case with regard to further proceedings in the case.]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

49.

[Memorial.

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

- An employee whose appeal under these Regulations has been rejected by the appellate authority subordinate to the Chairman, or in whose case such appellate authority has enhanced the penalty either on appeal under Regulation 40 or on review under Regulation 48(2) may address a memorial to the Chairman in respect of that matter within a period of 6 months from the date the appellant received a copy of the order of such appellate authority.]

50.

Canvassing non-official or outside Influence.

(1)

No employee shall bring or attempt to bring any political or outside influence to bear upon any superior authority to further his interests in respect of matters pertaining to his service in the Corporation.

(2)

No appeal, petition or memorial shall be addressed by any employee to the Members of the Corporation personally or to any outside authority or an authority not prescribed in these Regulation or in the Life Insurance Corporation Act.

Chapter - IV Pay and Allowances

51.

[Scales of Pay.

[Notified in Gazette of India, Part-III Section 3 dated 22.6.2000.]

(1)

The scales of pay, dearness allowance and other allowances (wherever payable) applicable to the employees of the Corporation in India shall be as prescribed in Schedule II hereto.

(1A)

[The basic pay and other allowance admissible from time to time to an employee belonging to Class II shall be regulated in accordance with the provisions contained in Schedule III.]

(2)

Where the scales of pay, dearness allowance or other allowances applicable to the employees of the Corporation or any class of them are revised in pursuance of any award, agreement or settlement, or otherwise, the method of fixation of pay in the new scales, the eligibility for the benefit of revision, the date from which the revision shall apply, and other matters connected therewith or incidental thereto shall be regulated by Instructions issued by the Chairman in this

behalf.]

52.

Commencement and Cessation.

(1)

An employee shall commence to draw the salary of a post to which he is appointed from the date he assumes charge of the post if such charge is assumed in the forenoon, and from the following day if the charge is assumed in the afternoon; and shall cease to draw the same from the day he relinquishes charge, if the charge is relinquished in the forenoon and from the following day if the charge is relinquished in the afternoon.

Provided that in the case of an employee who dies while in service, salary shall cease to be payable with effect from the day following that on which death occurs.

(2)

[Notwithstanding anything contained in sub-rule(1) an employee assuming charge of higher post on promotion may, at his option, choose any date which shall be within a period of 12 months from the date of taking charge, to have fixation of his salary in the higher post and where the option is so exercised he shall continue to draw the salary of lower post held by him till such date and the provisions of Rule 57 shall apply to the employee from the date so chosen by him but he shall for all other purposes be deemed to be an employee in the higher post from the date he assumes charge of such post and shall be competent to exercise all the powers of such higher post.]

[Notified in Gazette of India, Part-III Section 3 dated 22.6.2000.]

53.

Employees on Transfer.

- When an employee is transferred from one post to another, he shall, during any interval of duty between the date of his handing over charge of the old post and the date of his taking over charge of the new post, draw the salary and allowances [of the old post]

[Notified in Gazette of India, Part-III Section 4 dated 22.4.1976.]

Explanation: When an employee is transferred from a post in India to a post in a foreign territory or from a post in one foreign territory to a post in another foreign territory, he shall start drawing the salary of the new post from the date of embarkation to the new territory and shall cease to draw from that date the allowances attached to the old post. On retransfer to India such employee shall cease to draw salary and other allowances admissible to him on service overseas from the date of disembarkation in India and shall begin to draw from that date the salary and allowances of the post in India.

54.

Admissibility of Compensatory Allowance.

(1)

Save as provided by these Regulations, a compensatory allowance attached to a post will cease to be drawn by an employee when he vacates the post.

(2)

A compensatory allowance should ordinarily be drawn only by an employee actually on duty, but the Corporation may grant compensatory allowance or a portion thereof, subject to the provisions of Regulation 70, in addition to leave salary as prescribed in Regulation 69, during the period of leave or any part thereof.

55.

Overtime.

- Notwithstanding the fact that the whole time of an employee is at the disposal of the Corporation, the Corporation may [sanction overtime payments]

[Notified in Gazette of India, Part-III Section 4 dated 22.4.1976.]

to an employee belonging to Class III or Class IV who is required to work on Sundays or holidays or to put in extra hours on week days in connection with the Corporation's work, subject to the provisions of the local enactments.

56.

Increment.

(1)

The following service shall count for increment:

(a)

Service excluding periods spent on extraordinary leave in a post on a scale of pay counts in that scale, as well as in the time scale in which employee holds lien.

(b)

Service excluding periods spent on extraordinary leave in a higher post counts for increment in a lower post.

(c)

Period spent on foreign service counts for increment.

(d)

Service in another post of the same rank, service on deputation and leave other than extraordinary leave, and extraordinary leave if directed by the [Competent Authority]

[Notified in Gazette of India, Part-III Section 4 dated 1.4.1978.]

in terms of Regulation 69(4) counts for increment in the time-scale in which the employee is borne or on which he holds a lien.

(2)

[Subject to the other provisions of these Regulations, increments shall fall due]

[Notified in Gazette of India, Part-III Section 4 dated 22.4.1976.]

on the first day of the month following that in which the employee completes twelve months service in accordance with sub-regulation (1) from the date of his first appointment or from the date on which his last annual increment accrued or the date of promotion (except in cases where no change in time-scale is involved), as the case may be.

Explanation: 1. For the purpose of this sub-regulation, 12 months means a period of 365 days or 366 days where the month of February in a leap year is involved.

2. Where an employee on appointment to the service of the Corporation or on appointment to a higher post joins in the forenoon of the first working day of a month, he shall be deemed to have joined on the first of the month for the purpose of this regulation.

(3)

Increments shall ordinarily be drawn as a matter of course unless the employee has reached the maximum of the grade [or the employee cannot be allowed any increment in accordance with Schedule III]

[Notified in Gazette of India, Part-III Section 4 dated 22.4.1976.]

or it is withheld as a disciplinary measure under Regulation 39.

Provided that if in an incremental scale there is an efficiency bar an employee shall not draw increments above that bar until he has been certified fit to do so by the competent authority. On each occasion on which an employee is allowed to cross an efficiency bar which has previously been enforced against him, he shall be placed in the incremental scale at such stage as the aforesaid authorities may fix provided that such stage shall not be higher than that at which he would draw his salary if the bar had not been enforced against him and further that no increments granted on the removal of a bar shall have retrospective effect.

(4)

The competent authority may grant advance or special increments or temporary increments to an employee if the circumstances require it.

57.

[Refixation of Salary.]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

(1)

On appointment to a higher grade, the basic pay of an employee shall be initially fixed at one stage above that stage in the higher scale which is next above his basic pay in the lower scale.

Provided, however, that where the basic pay in the lower scale is a stage in the higher scale, the basic pay shall be fixed at the stage in the higher scale which is next above his basic pay in the lower scale.

Provided further that the basic pay shall be fixed at the minimum of the higher scale where such fixation results in an increase in basic pay of at least one grade increment obtaining at the minimum of the higher scale.

(2)

Subject to such conditions as may be imposed from time to time, a personal allowance may be granted to employees promoted to a higher cadre in consideration of the loss in remuneration drawn by them in the lower cadre at the time of

promotion.

Explanation: 1. For the purpose of this regulation, special pay, as defined shall be treated as part of basic pay.

2. In the case of officiating arrangements, the employee concerned shall draw only officiating allowance which shall be equal to the difference between the basic pay in the lower and the higher scales as determined above, provided that such officiating allowance may be reduced by the appointing authority, if the officiating arrangement is of a temporary nature and the circumstances justify it.]

58.

[Bonus.

[Notified in Gazette of India, Part-III Section 4 dated 26.5.1978.]

- No employee of the Corporation shall be entitled to profit sharing bonus. However, the Corporation may, having regard to the financial condition of the Corporation in respect of any year and subject to the previous approval of the Central Government, grant non-profit sharing bonus to its employees in respect of that year at such rate as the Corporation may think fit and on such terms and conditions as it may specify as regards eligibility for such bonus.]

59.

Ad hoc Grants & Bonus Commission.

- The Corporation may sanction ad hoc grants where the circumstances require it. The Corporation may also sanction bonus commission to its Development Officers depending upon business. [The Corporation may also sanction merit awards and incentive payments to employees in accordance with such schemes as it may approve from time to time.]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

59A.

[Medical Assistance Scheme.

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

- Renumbered as 81A]

Chapter - V [Holidays and Leave]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

[60A. Holidays. - (1) All employees of the Corporation, excluding the Building Maintenance Staff such as watchmen, liftmen, sweepers and cleaners who are not transferred employees shall be entitled to those holidays which are declared by the respective State Governments/Central Government as holidays under the Negotiable Instrument Act, 1881, but excluding such holidays as are expressly declared for the purpose of enabling banks to close their account.

(2)

The Building Maintenance Staff who are not transferred employees shall be granted seven holidays in a calendar year.]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

60B.

Kinds of Leave.

- Subject to the provisions of these Regulations the following kinds of leave may be granted to an employee:

(1)

Casual Leave

(2)

Privilege Leave

(3)

Sick Leave

(4)

Extraordinary Leave

(5)

Maternity Leave

(6)

Special Leave

(7)

Quarantine Leave

(8)

[Paternity Leave;]

[Inserted by Notification No. G.S.R. 415 (E), dated 28.4.2017 (w.e.f. 1.7.1960).]

61.

General Conditions Governing Grant of Leave.

- The following general principles shall govern the grant of leave to the employees:

(a)

Leave is earned by duty or service.

(b)

It cannot be claimed as a matter of right.

When the exigencies of service of Corporation so require discretion to refuse or revoke leave of any description is reserved to the authority empowered to grant it.

Explanation : Sanction of leave may not be presumed and leave asked for should not be availed of unless it has been specifically sanctioned.

(c)

[All leave lapses at the time of retirement, death, discharge, dismissal, resignation or termination for any reason whatsoever.]

[Notified in Gazette of India, Part-IV dated 30.3.1968.]

(d)

An employee on leave may not take up any service or accept any employment. During terminal leave or leave preparatory to retirement an employee may take up any service or accept any employment with the prior permission of the [Chairman]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

which should be granted only in rare cases.

(e)

An employee is expected to avail of leave granted, fully, before resuming duty. An employee on leave cannot return to duty before the expiry of such leave except with the permission of the competent authority.

(f)

An employee on leave on medical certificate may not return to duty without producing a medical certificate of fitness. The competent authority may require an employee who has availed of leave for reasons of health to produce a medical certificate of fitness even though such leave was not granted on medical certificate.

(g)

An employee who remains absent after the end of his leave is entitled to no leave salary for the period of such absence and the period of overstayal will be treated as extraordinary leave unless otherwise directed by the competent authority. Willful absence from duty after the expiry of leave will be treated as a breach of these Regulations for the purpose of Regulation 39.

(h)

Leave may be prefixed and/or suffixed to a holiday.

(i)

Leave may not be granted to an employee under suspension. A competent authority may, however, grant leave to an employee during the pendency of disciplinary proceedings.

(j)

Leave ordinarily begins on the day from which charge is handed over and ends on the day preceding that on which charge is resumed.

(k)

The leave to an employee is the period which he has earned diminished by the period of leave actually taken.

(l)

Casual leave may normally be availed of only after sanction by the competent authority but one day's casual leave may be availed of without prior sanction in case of unforeseen emergency provided the competent authority is promptly advised of the circumstances in which prior sanction could not be obtained.

(m)

Application for privilege leave shall ordinarily be submitted 15 days before the date from which the leave is required. Applications which do not satisfy this requirement may be refused without assigning any reason.

(n)

An employee shall, before proceeding on leave, intimate to the competent authority his address while on leave and shall keep the said authority informed of any change in the address previously furnished.

(o)

Combination of leave: Casual leave cannot be availed of in conjunction with any other kind of leave except special leave. Subject to this condition any kind of leave under these Regulations can be granted in combination with or in continuation of any other kind of leave.

62.

[Casual Leave and Additional Casual Leave.

[Notified in Gazette of India, Part-III, Section 4 dated 7.8.1971.]

(1)

An employee may be granted casual leave upto a maximum of 15 days during the period of 12 months from 1st July to 30th June.

(2)

Notwithstanding what is stated in sub-regulation (1) in the case of an employee who is governed by sub-regulation (1) of Regulation 60A in respect of holidays he may be granted additional casual leave for the number of days by which the holidays declared under the Negotiable Instruments Act in a calendar year fall short of 23½ days and such leave may be availed of during the period of six months from the 1st January of the following calendar year.

(3)

Subject to the provision contained in first proviso to Regulation 64 any casual leave or additional casual leave not availed of by an employee shall lapse at the end of the 30th June each year.

(4)

Casual leave can be availed of in conjunction with additional casual leave but not more than 6 days of either casual leave or additional casual leave or both combined may be granted at a time.]

63.

Scale on which Privilege Leave is Earned.

(1)

The amount of privilege leave earned shall be one-eleventh part of duty. "Duty" means the period spent in the service of the Corporation but excludes periods of leave of any kind except casual leave and quarantine leave.

(2)

The period of privilege leave which can be accumulated by any employee is [270]

[Substituted by Notification No. G.S.R. 415 (E), dated 28.4.2017 (w.e.f. 1.7.1960).]

days. Leave up to a maximum of 120 days may be sanctioned at any one time. Provided, however, an employee may be granted the full leave to his credit, subject to a maximum of [270]

[Substituted by Notification No. G.S.R. 415 (E), dated 28.4.2017 (w.e.f. 1.7.1960).]

days, preparatory to retirement.

(3)

[Notwithstanding anything contained in clause (c) of Regulation 61, in the event of death of an employee while in service a payment equal to the employee's salary for the period of privilege leave to his credit as on the [date of his death, subject to maximum of 240 days,]

[Notified in Gazette of India, Part-III Section 4 dated 12.6.1976.]

[* * *]

[The words 'but not exceeding 120 days' deleted vide notification dated 9.12.1988 (G.S.R. No. 1166-E)]

shall be allowed to the nominee in whose favour the nomination in respect of Gratuity subsists and if no such nomination subsists to the legal heirs of the employee.]

[Provided (deleted)]

[Notified in Gazette of India, Part-III, Section 4 dated 7.8.1971.]

64.

Sick Leave.

- An employee shall be entitled to sick leave on medical certificate at the rate of one month for each completed year of service subject to a maximum of sixteen months throughout the service [in the Corporation]

[The words 'but not exceeding 120 days' deleted vide notification dated 9.12.1988 (G.S.R. No. 1166-E)]

[Provided that the casual leave and the additional casual leave admissible to an employee under sub-regulation (1) and (2) of Regulation 62 and not availed of by him shall be converted into additional sick leave on full pay upto a maximum of two months or on half pay upto a maximum of four months during the entire period of his service to be availed of by him on medical certificate.

Provided further that if an employee is suffering from any of the [major diseases of cancer, leprosy. T.B., paralysis, mental diseases, brain tumor, cardiac ailments or kidney diseases]

[Notified in Gazette of India, Part-III, Section 4 dated 7.8.1971.]

he may be allowed special sick leave on half pay for a period not exceeding six months if he has to his credit no sick leave admissible to him.]

65.

Extraordinary Leave.

- Extraordinary leave may be granted to an employee when no leave is due to him under these Regulations. Except in exceptional circumstances the duration of extraordinary leave shall not exceed three months on any one occasion and 12 months during the entire period of an employee's service. A competent authority may commute retrospectively periods of absence without leave into extraordinary leave.

66.

[Maternity Leave.

[Notified in Gazette of India, Extraordinary, Part-II Section 3 Sub-Section (i) dated 25.09.1989.]

- The competent authority may grant to a female employee maternity leave for a period which may extend upto 3 months subject to a maximum of 12 months during the entire period of an employee's service.]

66A.

[Paternity Leave.

[Inserted by Notification No. G.S.R. 415 (E), dated 28.4.2017 (w.e.f. 1.7.1960).]

(1)

The competent authority may grant to a male employee having less than two surviving children, paternity leave for a period of 15 days during the confinement of his wife.

(2)

The Paternity Leave may be combined with leave of any other kind except Casual Leave.

(3)

The Paternity Leave shall not be debited against the leave account.

(4)

The Paternity Leave shall be utilised by the employee within a period of six months from the date of delivery of the Child and may be applied within a period of 15 days before the expiry of the said period of six months.

(5)

An application for Paternity Leave which does not satisfy the requirements of sub-rule (4) shall be refused without assigning any reason.]

67.

Special Leave.

(1)

The Chairman may, at his absolute discretion, grant special leave to any employee. Such leave shall not be debited to any leave account.

(2)

[The Chairman may also direct by Instructions issued in this behalf that special leave may be granted to employee for (i) injury from accidents arising from and in the course of employment, (ii) undergoing sterilisation operations, (iii) participating in tournaments or (iv) any other purpose whether of the same nature or not, specify the duration of leave for any purpose and the condition subject to which such leave may be granted and delegate the authority to any officer [not below the rank of Assistant Divisional Manager]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

to grant the leave.]

68.

Quarantine Leave.

- Quarantine is leave of absence from duty necessitated by orders not to attend office in consequence of the presence of infectious diseases in the household of a Corporation employee. Such leave may be granted by the competent authority on the certificate of a Medical or Public Health Officer for a period not exceeding 21 days, or, in exceptional circumstances, 30 days. Any leave necessary for quarantine purposes in excess of this period shall be treated as ordinary leave. A Corporation employee on quarantine leave is not treated as absent from duty. When the employee himself is suffering from infectious disease, he shall not be entitled to quarantine leave. He shall be entitled only to privilege, sick or extraordinary leave, as the case may be.

Notes: 1. The term "Medical or Public Health Officer" occurring in this regulation includes Medical Officer-in-Charge of any Government (Civil or Military) or Municipal hospital or dispensary, or a qualified medical practitioner appointed by the Corporation. In the case of a Corporation employee at whose place of duty there is no Government or Municipal hospital or dispensary, it includes the Medical Officer-in-Charge of a Government or Municipal hospital or dispensary situated nearest to his place of duty or a qualified medical practitioner appointed by the Corporation.

2. Cholera, small-pox, plague, diphtheria, typhus fever and cerebro spinal meningitis may be considered as infectious disease for the purposes of this regulation. In the case of chicken-pox quarantine leave should not be sanctioned unless the Medical Officer responsible considers that because of doubt as to the true nature of the disease, for example, small-pox, there is reason for the grant of such leave. In the case of a Corporation employee stationed in areas under the administration of State Government, such other diseases as may have been declared by those Governments as infectious for the purpose of their quarantine leave rules may also be considered as infectious disease for the purpose of this regulation. Such Corporation employee will, however, be eligible for quarantine leave for any of the diseases mentioned above even though it has not been declared in orders issued by the State Government concerned to be an infectious disease.

69.

Leave Salary.

(1)

Casual Leave: An employee on casual leave shall be treated as on duty for the purpose of leave salary.

(2)

Privilege Leave: An employee on privilege leave shall, during the period of privilege leave, draw leave salary equal to the salary he drew on the day preceding the date on which he proceeded on leave.

(3)

[Sick Leave: Sick leave will only be on half pay and an employee on half pay sick leave shall draw half of the aggregate of basic pay, special pay, personal pay, personal allowance and functional allowance, if any. In addition he shall also draw dearness allowance, additional dearness allowance, house rent allowance, city compensatory allowance, adjustment allowance and hill allowance (where payable) appropriate to half the aggregate of basic pay and special pay. Any period of sick leave on half pay may be converted into sick leave on full pay for half the period at the option of the employee and twice the amount of commuted leave shall be debited against the half-pay leave.]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

(4)

Extraordinary Leave: No salary is admissible during the period of extraordinary leave. The period spent on such leave shall not count for increments.

[Provided that in cases where the competent authority is satisfied that the leave was taken on account of illness or any other cause beyond the employee's control, he may direct that the period of extraordinary leave may count for increments.]

[Notified in Gazette of India, Part-IV dated 18.06.1966.]

(5)

Maternity Leave, Special Leave [Quarantine Leave and Paternity Leave]

[Substituted by Notification No. G.S.R. 415 (E), dated 28.4.2017 (w.e.f. 1.7.1960).]

An employee on maternity leave, special leave or quarantine leave shall draw leave salary equal to the salary he drew on the day preceding that on which he proceeded on such leave.

(6)

Notwithstanding anything contained in this regulation, an employee would be entitled to the increment in the time-scale

falling due when he is on leave other than extraordinary leave and he shall draw the increased salary from the date such increment falls due.

70.

Compensatory Allowance on Leave.

- The competent authority may [subject to such Instructions as the Chairman may issue from time to time]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

permit an employee on leave to draw compensatory allowance or a portion thereof in addition to leave salary if it is satisfied that the whole or considerable part of the expenses to meet which the allowance was given continued during leave.

71.

Joining Time.

(1)

Joining time may be granted to an employee to enable him -

(a)

to join a new post to which he is appointed while on duty in his old post; or

(b)

to join a new post on return from leave of not more than four months duration, or although the duration of leave exceeds four months, the employee has not had sufficient notice of his appointment to the new post.

(2)

Joining time shall be regarded as duty for the purpose of these Regulation and the salary during joining time shall be regulated in accordance with Regulation 53.

72.

Joining Time-How Calculated.

(1)

Not more than one day is allowed to an employee in order to join a new post when the appointment to such post does not necessarily involve a change of residence from one station to another. A holiday counts as a day for the purpose of this sub-regulation.

(2)

For transfers involving change of station, six days are allowed for preparation and, in addition, a period to cover the actual journey calculated as follows:

(a)

An employee is allowed -

(i)

For the portion of the journey which he travel by air-craft.

Actual time occupied in the journey.

(ii)

For the portion of the journey which he travels or might travel-

One day for each

By railway

400 Kilometres

}

or any longer time actually occupied in the journey.

By Ocean steamer

320 Kilometres

By river Steamer

128 Kilometres

By Motor vehicle or horse drawn conveyance

128 Kilometres

In any other way

24 Kilometres

(b)
(i)
For purpose of journey by air under clause (a) (i) a part of a day shall be treated as one day.

(ii)
A day is also allowed for any fractional portion of any distance prescribed in clause (a)(ii).

(c)
When part of the journey is by steamer, the limit of six days for preparation may be extended to cover any period unavoidably spent in awaiting the departure of the steamer.

(d)
Travel by road not exceeding five miles to or from a railway station or (steamer ghat) at the beginning or end of a journey does not count for joining time.

(e)
A Sunday does not count as day for the purpose of the calculations in this sub-regulation.

(3)
An employee who is posted to a foreign country shall be allowed 15 days preparation time and the time actually required for the journey.

73.
Joining Time cannot be claimed as a Matter of Right.

- Joining time cannot be claimed as a matter of right. It may be curtailed at the discretion of the competent authority.
Explanation : where the joining time is curtailed the competent authority may grant special leave, not exceeding the period of joining time curtailed, to enable an employee to go back to his previous place of duty for winding up his establishment or for any other connected purpose.

74.
Overstayal after Joining Time.

- An employee who does not join his post within the joining time allowed to him, except under circumstances beyond his control, shall not be entitled to any pay or leave salary after the end of the joining time. Wilful absence from duty after the expiry of joining time may be treated as a breach of these Regulations for the purpose of Regulation 39.

Chapter - VI Foreign Service

75.
Deputation of Employees to Other Services.

(1)
No employee of the Corporation shall be sent on foreign service except with the approval of the Chairman.
Provided that no employee shall be sent on foreign service against his will.

(2)
Transfer to foreign service should ordinarily not be granted unless -

(a)
the duties to be performed are such that they should necessarily be performed by an employee of the Corporation or involves such technical knowledge, experts in which are not readily available from other sources;

(b)
that transferee at the time of transfer holds a permanent post in the Life Insurance Corporation;

(c)
the terms granted are not so greatly in excess of remuneration which an employee would receive in the service of the Corporation as to render foreign service appreciably more attractive than the Corporation's service.

(3)
Where the services of an employee of the Corporation are placed at the disposal of a foreign employer it shall be a condition of the deputation that the foreign employer shall, during the period of such deputation, bear the entire cost of the services of the employee including the following viz, -

(a)
Salary during joining time;

(b)

travelling allowances payable to the employee to enable him to join his appointment under the foreign employer and to return to his appointment in the Corporation on the termination of his deputation;

- (c)
leave salary for the leave earned period during the period of deputation;
- (d)
the employer's contributions to the employee's account in the Corporation's Provident Fund.

In addition, the foreign employer may also be required to make a contribution towards any gratuity or other sum, for which the employee may become eligible, on such scale as may be fixed by the Chairman.

Chapter - VII Miscellaneous

76.

Provident Fund.

- [(1) Every employee of the Corporation, other than an employee on probation or an employee appointed on temporary basis or an employee who is contributing to an approved Superannuation fund, shall contribute to the Provident Fund at 8-1/3 per cent of the aggregate of his [basic pay including special pay]

[Notified in Gazette of India, Part-IV dated 2.3.1968 and Part-III Section 4 dated 7.8.1971.]

and if he is a transferred employee, on that portion of the personal pay which shall be equal to the amount by which his [basic pay including special pay]

[Notified in Gazette of India, Part-IV dated 2.3.1968 and Part-III Section 4 dated 7.8.1971.]

from time to time in the Corporation falls short of his [basic pay including special pay]

[Notified in Gazette of India, Part-IV dated 2.3.1968 and Part-III Section 4 dated 7.8.1971.]

as on 31.8.1956. The Corporation shall contribute to the Fund every month an amount equal to the actual contribution of each member subject to a maximum of 8-1/3 per cent of the aggregate of the [basic pay including special pay]

[Notified in Gazette of India, Part-IV dated 2.3.1968 and Part-III Section 4 dated 7.8.1971.]

and if he is a transferred employee, on that portion of the personal pay which shall be equal to the amount by which his [basic pay including special pay]

[Notified in Gazette of India, Part-IV dated 2.3.1968 and Part-III Section 4 dated 7.8.1971.]

from time to time in the Corporation falls short of his [basic pay including special pay]

[Notified in Gazette of India, Part-IV dated 2.3.1968 and Part-III Section 4 dated 7.8.1971.]

as on 31.8.1956. A separate Trust shall be established in respect of such Fund.]

Explanation : [Deleted]

[Notified in Gazette of India, Part-IV dated 2.3.1968 and Part-III Section 4 dated 7.8.1971.]

(1A)

[Where an employee is an employee in [Class II or]

[Notified in Gazette of India, Part-III Section 4 dated 4.5.1974.]

Class III or Class IV the provisions of sub-regulation (1) shall with effect from 1st April, 1973, apply as if for the figure "8-1/3" appearing therein, the figure "10" had been substituted.]

(1B)

[Where an employee is an employee in Class I, the provisions of sub-regulation (1) shall with effect from (1st April, 1973) apply as if for the figure "8-1/3" appearing therein the figure "10" had been substituted.]

[Notified in Gazette of India, Part-III Section 4 dated 10.7.1976.]

[The provisions of sub-rule (1), (1A), and (1B) shall not apply to an employee who has joined the services of the Corporation on or after 1st April, 2010.

Provided that an employee who has joined the services of the Corporation on or after 1st April, 2010 shall be governed by the defined contribution pension scheme to be framed by the Corporation.]

[Notified in Gazette of India, Part-II Section 3(i) dated 8.10.2010, GSR No. 829(E).]

(2)

[In the case of transferred employees of the Oriental Government Security Life Assurance Company Limited, who are contributing to the Pension Fund of that Company which is being continued with modifications as a separate Fund for such employees only, they shall be entitled to Pension according to the Rules of that Fund. [Such employees may, however, be permitted to contribute to the Provident Fund established by the Corporation but the Corporation shall not be required to make any contribution to the Provident Fund in respect of such employees]

[Notified in Gazette of India, Part-IV dated 20.1.1962.]

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77.

Gratuity.

(1)

[(a) A permanent employee who has been in continuous service of the Corporation (including service with the insurer) for not less than 15 years (excluding period of probation or temporary service in respect of employees recruited on or after 1.9.1956); and

(i)

whose services are terminated by the Corporation for any reason whatsoever; or

(ii)

who voluntarily resigns from the service of the Corporation; or]

(b)

a permanent employee

(i)

who dies while in the service of the Corporation;

(ii)

who retires from the service of the Corporation; or

(iii)

whose services are determined either due to continued illness or accident incapacitating him from the proper discharge of his duties; or

(iv)

whose services are dispensed with owing to reduction of staff for reorganisation of establishment;

Will be eligible for the gratuity benefits.

(2)

[Gratuity admissible to an employee shall be at the rate of one month's terminal basic pay including special pay, for each completed year of continuous service (inclusive of regular salaried service with the insurer) in respect of first 15 years and at the rate of half a month's terminal basic pay including special pay for each completed year of further continuous service; so, however, that the total gratuity admissible shall not exceed a maximum of 20 month's terminal basic pay including special pay or Rs. 30,000/- whichever is less.]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

Note: For the purpose of this sub-regulation any period spent by an employee on extraordinary leave, exceeding 12 months during the entire period of his service shall be excluded.

(2A)

[In case of a Class I Officer who has been promoted from Class III cadre on or after the 1st day of April, 1973 and who dies or retires after promotion, the gratuity payable to him shall not be less than the gratuity that would have been payable to him if his services had been terminated while he was in Class III cadre.]

[Notified in Gazette of India, Part-III Section 4 dated 4.11.1978.]

(3)

[Notwithstanding anything stated above, in the case of transferred employee, gratuity payable under this regulation shall in no case be less than the gratuity to which the employee would have been entitled if the termination of his service had taken place on 31.8.1956.]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

(3A)

[Where an employee is an employee in Class III or Class IV gratuity admissible in his case shall be determined in accordance with the provision of the foregoing sub-regulations or calculated (subject to the terms of the proviso herein) under the payment of Gratuity Act, 1972, as it stands on 24th January,1974 (hereinafter referred to as the said Act), whichever is more favourable to him:

Provided that -

(a)

While calculating the gratuity under the said Act the monthly salary of an employee shall be deemed to be his terminal

basic pay (including special pay), Dearness Allowance and additional Dearness Allowance;

(b)

the provisions of the said Act shall be applied notwithstanding that his monthly salary as above is over Rs. 1,000/- ;

(c)

in the case of an employee who dies while in the service of the Corporation after having completed 15 years of continuous service; the gratuity under the said Act shall be calculated at the rate of one month's salary for every completed year of service, and in all other cases at the same rate as specified in the said Act; and

(d)

where the gratuity calculated under the said Act in the manner specified herein exceeds Rs. 20,000/- the gratuity payable shall be deemed to be Rs. 20,000/- only.]

(4)

[Subject to any lien the Corporation may have on the amount of gratuity admissible to an employee, the Corporation shall pay the employee or his nominee or nominees or if no nomination is made or is subsisting, his heirs, the amount of gratuity admissible under this regulation.

(5)

Notwithstanding anything contained in the foregoing sub-regulations -

(i)

where the penalty of dismissal is imposed on an employee for any act involving violence against the management or other employees or any riotous or disorderly behaviour in or near the place of employment, the gratuity payable to him shall stand wholly forfeited; and

(ii)

where the penalty of compulsory retirement, removal from service or dismissal is imposed on an employee for any act involving the Corporation financial loss, the gratuity payable to him shall stand forfeited to the extent of such loss.]

78.

Superannuation Fund.

(1)

Employees who are members of an approved Superannuation Fund shall be governed by the rules of such fund.

(2)

In the case of transferred employees who were eligible to pension benefits under the rules of the insurer and who were not members of an approved Superannuation Fund, pension may be granted in respect of service prior to 1.9.1956 on a suitable basis to be determined by the Corporation.

79.

Travelling Allowance Rules.

- Tours on official business may be sanctioned by an officer not below the rank of a Divisional Manager [or such lower authority as may be so authorised by the Chairman]

[Notified in Gazette of India, Part-IV dated 18.06.1966.]

. The rates of travelling allowance and halting allowance and the conditions under which they become payable shall be regulated in accordance with Schedule V.

80.

Transfers.

- The competent authority may transfer an employee from one department to another in the same office or from one office of the Corporation to another office.

81.

[Overseas Allowance etc.

[Notified in Gazette of India, Part-III Section 4 dated 23.04.1977.]

- The Corporation may grant foreign allowance, local allowance, children's education allowance and kit allowance to its employee posted abroad and provide them free furnished accommodation or grant appropriate house rent allowance and also grant them such other allowances as may be decided upon from time to time by the Corporation.]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

81A.

[Medical Assistance Scheme.

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

- The Corporation may grant medical benefits to its employees in accordance with such scheme or schemes as it may approve from time to time.]

[Notified in Gazette of India, Part-III Section 4 dated 4.5.1974.]

82.

Conveyance Facilities.

- The Corporation may provide conveyance facilities to its employees and/or grant loans for the purchase of conveyances subject to the provisions of section 27A(1)(m) of the Insurance Act as applied to the Life Insurance Corporation of India.

83.

[Travel Allowance for Leave etc.

[Notified in Gazette of India, Part-III Section 4 dated 18.11.1972.]

(1)

The Corporation may, subject to such conditions as may be laid down by the Corporation from time to time, grant travel allowance to its employees for travel to home-town during leave. Provided that the aforesaid allowance for travel during leave to any place other than home town may be availed by the employees, subject to such conditions as may be specified by the Corporation.]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

(2)

[The Corporation may, subject to such conditions as may be laid down by the Corporation from time to time, on death or retirement of an employee belonging to Class-I and Class-II, grant reimbursement of travelling expenses to his family or the employee and his family, as the case may be, for travel to home town.]

[Notified in Gazette of India, Part-IV dated 8.1.1966.]

84.

[Entertainment Facilities.

[Notified in Gazette of India, Part-IV dated 8.1.1966.]

- The Corporation may grant such entertainment facilities to its employees belonging to Class II as may be decided by the Corporation from time to time.]

85.

[Employees to furnish Address.

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

- Every employee shall intimate his full residential address to the office in which he is working and any change in the address previously furnished. All communications sent to the last address so intimated to the office shall be deemed to have been properly sent to him.]

Relaxation:

1. The Executive Committee may, in the interest of the Corporation, for reasons to be specified in its resolution, relax any of the provisions of these Regulations in individual cases.

2. The Life Insurance Corporation of India (Staff) Regulations, 1956 are hereby repealed.

Repeals:

[Schedule - I]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

(See Regulations 6, 39 & 40)

Appointing, Disciplinary and Appellate Authorities

Category of employees

Appointing Authority

[Disciplinary Authority (For all Penalties)]

[Corrigendum issued on 10.08.1999.]

Appellate Authority

(a) [Class I:]

[Notified in Gazette of India Part-II Section 3 Sub-Section (i) dated 18.6.1999.]

Posts in the

cadres of ZM and above and equivalent cadres

Executive Committee

Executive Committee

Corporation

Posts in the

cadres of DZM/ Sr.DM/ DM and equivalent cadres

Chairman

Chairman

Executive Committee

Posts in the

cadres of ADM/ Sr.BM and equivalent cadres :

Managing Director

Managing Director

Chairman

Posts in the

cadres of BM/AO and equivalent cadres :

Executive Director(P)

Executive Director(P)

Managing Director

Other posts

in Class-I

ZM/D(P) C(A&I)

ZM/D(P) C(A&I)

Managing Director

(b)Class II:

DM

DM

ZM

(c)Class III & IV:

Superintendents:

ZM/D(P) C(A&I)

ZM/D(P) C(A&I)

MD

Other employees:

DM

DM

ZM/D(P) C(A&I)

Notes : (1) Notwithstanding the provisions contained in this Schedule, the immediate superior Class I Officer shall have authority to impose the penalty of censure under Regulation 39(1) (a) and any appeal against the imposition of such penalty shall lie to an officer one step higher.

(2)

[In this Schedule, C(A&I) means the Chief (Audit & Inspection), Z.M. means the Zonal Manager in charge of the Zone; D(P) means the Executive Director(Personnel) and M.D. means Managing Director. Where the authority is D.M. it shall mean (a) in a Division, the Officer-in-charge of the Divisional Office not below the rank of Divisional Manager; (b) at the Zonal Office and Central Office an Officer not below the rank of Divisional Manager, duly authorised by the Z.M., and D(P) respectively; (c) in respect of the Internal Audit and Inspection Department at a place other than Central Office, the Deputy Secretary(A&I) and (d) in respect of the internal Audit & Inspection Department at the Central Office, an Officer, not below the rank of Divisional Manager duly authorised by the C(A&I).]

[Notified in Gazette of India, Part-III Section 4 dated 16.12.1972.]

II

(See Regulation 51)

Scales of Pay, Dearness Allowance and Other Allowances Applicable to the Employees of the Corporation in India
Consequent to the amendment to LIC Act, 1956 in the year 1981 the Pay Scales and other service conditions of the employees of the Corporation are determined by the Central Government in exercise of the powers conferred upon them by Section 48 of the said Act. Accordingly, the Central Government has made following three separate rules regulating pay scales and certain other service conditions in respect of Class-I Officers, Development Officers and Class-III and Class-IV employees respectively.

1. Life Insurance Corporation of India Class-I Officers (Revision of Terms and Conditions of Service) Rules, 1985.
2. Life Insurance Corporation of India Development Officers (Revision of Terms and Conditions of Service) Rules, 1986.
3. Life Insurance Corporation of India Class-III & Class-IV Employees (Revision of Terms and Conditions of Service) Rules, 1985.

The said rules have been updated upto 31st May, 2006 and are enclosed herewith as Annexure-3, 4 & 5, respectively.

For Kit Allowance Rules

-

Please see Annexure-8.

For Special Area Allowance

-

Please see Annexure-9.

For Special Allowance for Passing Examinations

-

Please see Annexure-10.

Hill Allowance

-

This is part of Revision Rules mentioned above.

Water Scarcity Allowance

-

Water Scarcity Allowance will be paid to Class II (Development) Officers, Class III (Clerical & Supervisory) and Class IV (Subordinate) employees at places where such allowance is paid by the Central or the State Governments at the same rate and for the same duration and on the same terms and conditions as may be prescribed by the Central/State Governments concerned.

[Schedule - III]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

Special Provision Relating to Class-II Development Officers

(See Regulation 51(1A))

Consequent to the amendment to LIC Act, 1956 in the year 1981 the Pay Scales and other service conditions of the employees of the Corporation are determined by the Central Govt. in exercise of the powers conferred upon them by Section 48 of the said Act. Accordingly, the Central Govt. has framed following Rule regulating certain provisions relating Class-II Development Officers:

Life Insurance Corporation of India Development Officers (Revision of Certain Terms and Conditions of Service) Rules, 2009.

The said rules are enclosed herewith as Annexure-6.

IV

Competent Authorities

Reg. No.

Nature of Power

Authority

Extent of Power

[10]

[Deleted vide notification No. G.S.R. No. 444(E), dated 18.6.1999]

[.....]

[11]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971]

To grant advance increments

D(P)

In respect of employees belonging to Classes II, III & IV.

Chairman

In respect of appointment in Class-I in the cadres of AAO/ABM and equivalent cadres.

Corporation

In other cases.

[16(1)]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971]

To extent the period of Probation

Appointing Authority

[In respect of all Class-III and IV employees, Class-II

Officers and Class-I Officers upto the cadre of Deputy Zonal

Manager/Senior Divisional Manager.]

[Notified in Gazette of India, Part-II Section 3 Sub-Section (i) dated 1.8.1999.]

Chairman

In respect of all Officers of the cadre of Zonal

Manager/Executive Director ? Full.

[16(2)]

[Notified in Gazette of India, Part-III Section 4 dated 16.12.1972.]

To revert during the period of probation.

Appointing Authority

Full

[17]

[Notified in Gazette of India, Part-III Section 4 dated 16.12.1972]

To appoint an employee to officiate in a higher post.

Appointing Authority

Full

Chairman in respect of posts for which the Corporation or Executive Committee is the appointing Authority.

Full

ZM/D(P)/C (A&I) in respect of posts for which the Chairman or M.D. is the appointing authority.

If the period of officiating arrangement is not more than three months.

18(1)

To accept notice from an employee about his intention to leave the service and to waive the notice period in full or in part.

Appointing Authority

Full

[19]

[Notified in Gazette of India, Part-III Section 4 dated 21.7.1977]

To direct an employee to retire on completion of 55 years of age or 50 years of age, as the case may be.

M.D.

In respect of employee belonging to Classes II, III and IV and employees in Class-I in the cadres of AAO/ABM and AO/BM and

equivalent cadres.

Appointing Authority

In other cases.

[To refuse leave preparatory to retirement]

[Notified in Gazette of India, Part-III Section 4 dated 16.12.1972.]

[Senior Divisional Manager]

[Notified in Gazette of India, Part-II Section 3 sub-section(i) dated 18.6.1999.]

In respect of Class-I Officers of the rank of BM/AO and below
and employees belonging to Classes II, III & IV.

ED(P)/ZM-In Charge

In respect of Officers of the rank of ADM/DM/SDM/DZM.

Managing Director

In respect of Officers of the rank of Zonal Manager/E.D.

[23(1)]

[Notified in Gazette of India, Part-II Section 3 sub-section(i) dated 18.6.1999.]

To allow an employee to give evidence in connection with an
enquiry conducted by any person, Committee, or authority.

[E.D. (P)]

[Notified in Gazette of India, Part-II Section 3 sub-section(i) dated 18.6.1999.]

In connection with an enquiry belonging to Class-I, III &
IV ? Full

E.D. (Mktg.)

In connection with an enquiry belonging to Class-II - Full

28.

To allow an employee to seek outside employment

Appointing Authority.

Full

D(P) in respect of employees appointed to posts for which
Chairman is the appointing authority.

Full

29. []

[Notified in Gazette of India, Part-II Section 3 sub-section(i) dated 1.8.1999.]

To allow an employee to undertake part-time work and to
determine the amount to be paid to the Corporation

DM incharge of the Division/Dy. Secy. (A&I)

In respect of employees in the cadres of ADM & below.

ZM incharge of a Zone

In respect of employees in the Zonal Office upto and including
the rank of DZM as also Dms in the Divisional Office under his
control

D(P)/C (A&I)

In respect of employees in the Central Office/Internal Audit
and Inspection Department upto and including the rank of DZM.

Chairman

In respect of Officers of the rank of ZM/ED and MD.

30(1)

To allow an employee to remain absent.

Immediate superior Class 10 Officer.

Full

To dispense with the medical certificate.

Authority empowered to grant sick leave under Regulation 61.

Full

30(2)

To take disciplinary action for unauthorised absence or for overstayal of leave and/or sanction leave to cover the absence or overstayal

Disciplinary authorities prescribed in Schedule-I.

Full

30(3)

To forfeit leave for late attendance.

Immediate superior Class I Officer.

Full

To condone late attendance.

- do -

Upto two days in a month

31

To allow an employee to absent himself from station

- do -

Full

34(1)

To allow an employee to lend to a person possessing land or valuable property within the local limits of authority on interest.

Appointing Authority.

Full

34(2)

To allow an employee to borrow money from a person within the local limits of authority.

Appointing Authority.

Full

35

To receive statement of debt from an employee.

Officer-in-Charge.

Full

36(1)

To suspend

Appointing Authority

Full

Officer-in-charge other than the Appointing Authority.

In exceptional circumstances for reasons to be recorded in writing.

56(3)

To allow an employee to cross Efficiency Bar.

Appointing Authority.

Full

[56(4)]

[Notified in Gazette of India, Part-II Section 3 Sub-section(i) dated 18.6.1999.]

To grant advance or special or temporary increments

M.D.

In respect of all Class-II, III & IV employees and

Officers in the cadre of AAO/ABM and equivalent cadres ?

Full

Chairman

In respect of Officers in the cadre of AO and above - Full

[61, 65, 66, 66A and 68]

[Substituted by Notification No. G.S.R. 415 (E), dated 28.4.2017 (w.e.f. 1.7.1960).]

To Sanction Leave:

Casual Leave:

Immediate superior Class I Officer.

For all

[Privilege leave, Sick leave and Maternity leave.]

[Notified in Gazette of India, Part-III Section 4 dated 8.12.1979.]

Class I Officer duly authorised by the Officer-in-Charge.

In respect of employees belonging to Classes II, III and IV.

[[Quarantine leave, Paternity leave]

[Notified in Gazette of India, Part-III Section 4 dated 8.12.1979.]

, Extra-ordinary leave and Commutation of leave.]

An Officer not below the rank of Branch Manager or Administrative Officer duly authorised by the Officer-in-Charge.

In respect of employees belonging to Classes II, III and IV.

Privilege leave, Sick leave, Maternity leave, Quarantine leave and Extraordinary leave and Commutation of Leave.

Officer-in-Charge not below the rank of ADM or an Officer not below the rank of ADM duly authorised by the officer-in-Charge.

In respect of Class I Officers in the cadres of AO/BM, AAO/ABM and equivalent cadres.

Officer-in-Charge not below the rank of DM/Dy. Secy. (A&I)

or an Officer not below the rank of DM/ Dy. Secy. (A&I) duly authorised by ZM/D(P)/C (A&I)

In respect of Class I Officers in the cadres of ADM/Sr. B.M. and equivalent cadres.

ZM/D(P)/C (A&I)

In respect of other Class I Officers below the rank of ZM.

Chairman

In respect of Mds, Eds, Zms and C (A&I).

Corporation

In respect of Chairman.

Extra-ordinary leave under special circumstances

ZM/D(P)/C (A&I)

In respect of employees belonging to Classes II, III and IV and Class I Officers in the cadres of ADM/Sr. B.M. and equivalent cadres and other Class I Officers of lower rank.

Chairman

For other Class I Officers.

To allow an employee to return from leave before the expiry of the leave.

Authorities empowered to grant leave.

Full

To recall an employee from leave

Authorities empowered to grant leave.

Full

To ask an employee to produce medical certificate even when

leave was not granted on medical certificate but was availed on grounds of health.

- do -

Full

To direct to treat the period of overstayal as leave other than extra-ordinary leave.

Authorities empowered to grant leave.

Full

To grant leave to an employee during the pendency of disciplinary proceedings against him.

-do-

Full

[64]

[Notified in Gazette of India, Extraordinary, Part-II section 3 sub-section (i) dated 25.9.1989.]

To grant special sick leave to employees suffering from any of the major diseases of cancer, leprosy, T.B., paralysis, mental diseases, brain tumor, cardiac ailments and kidney diseased.

Officer-in-charge not below the rank of Divisional Manager.

Deputy Secretary. (A&I) or an officer not below the rank of Divisional Manager/Deputy Secretary (A&I) duly authorised by Zonal Manager/D(P)/ Chief (A&I)

In respect of classes III & IV employees

Appointing Authority

In respect of Class II Officers

Chairman

In respect of Class I Officers in the cadre of Divisional Manager and above.

Zonal Manager/Director (P)/ Chief (Audit & Inspection)

In respect of Class I Officers in the cadre of Assistant Divisional Manager/Senior Branch Manager and below.

[69(4)]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

To allow the period of extra-ordinary leave to count for increments

ZM/C (A&I)

In respect of employees belonging to Classes II, III and IV and Class I Officers in the cadres of AAO/ABM and equivalent cadres in the Zone/Internal Audit & Inspection Deptt. when extra-ordinary leave has been taken on account of illness supported by medical certificate.

D(P)

In respect of employees below the rank of ZM not covered by above.

MD

Other cases.

70

To allow an employee on leave to draw compensatory allowance either in part or in full

Authorities empowered under Regulation 61.

According to the orders that may be laid down from time to time.

[73]

[Notified in Gazette of India, Part-III Section 4 dated 16.12.1972.]

To curtail joining time and to grant special leave to the extent of joining time curtailed.

ZM.D(P)/C (A&I)

In respect of Class I Officers.

Authorities empowered to sanction transfer.

In respect of others.

80

Transfer of Employees

[A. To transfer employees belonging to Class II, III & IV working in:

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

(i) Central Office

D(P)

Full

(ii) Internal Audit &

Inspection Department

Dy. Secy. (A&I)

If the transfers are within the zone.

(iii) Zone]

C(A&I)

Full

DM

If the transfers are within the Division.

ZM

If the transfers are within the Zone but inter Divisional

D(P)

If the transfers are inter-zonal from zones to Central Office or vice-versa & from India to a foreign country or vice-versa.

[B. To transfer employees

belonging to Class I:

[Notified in Gazette of India, Part-II Section 3 sub-section (i) dated 18.6.1999.]

(a)

Appointed to posts in the cadres of AAO/ABM and equivalent cadres working in:

(i)

Central Office.

D(P)

Full

(ii)

Internal Audit & Inspection Department

[Dy. Secy. (Audit)/Dy.

Secy. (Insp.)]

[Notified in Gazette of India, Part-II Section 3 sub-section (i) dated 18.6.1999.]

If the transfers are within the Zones

ED (Audit)

Full

ED (Insp.)

Full

(iii)

Zones]

Sr. DM-In-Charge

If the transfers are within the Divisions.

ZM

If the transfers are within the Zones from one Zone to another.

D(P)

If the transfers are from Zones to Central Office or vice-versa and from India to a foreign country or vice-versa overseas.

(b)

Appointed to posts in the cadres of AO/BM and equivalent cadres working in:-

(i)

Central Office

D(P)

Full

(ii)

Internal Audit & Inspection Department

[Dy. Secy. (Audit)/Dy.

Secy. (Insp.)]

[Notified in Gazette of India, Part-II Section 3 sub-section (i) dated 18.6.1999.]

If the transfers are within the Zones

ED (Audit)

Full

ED (Insp.)

Full

(iii)

Zones

Sr. DM-In-charge

If the transfers are within the Divisions.

ZM

If the transfers are within the Zones.

ED(P)

If the transfers are from one Zone to another, from Zone to Central Office or vice-versa and from India to a foreign country or vice-versa.

(c)

Appointed to posts in the cadres of ADM/Sr. B.M. and equivalent cadres.

[ZM-In-charge]

[Notified in Gazette of India, Part-II Section 3 sub-section (i) dated 18.6.1999.]

If the transfers are within the Zones.

ED(P)

Full

(d)

Appointed to posts in the cadres of DM/SDM/DZM and equivalent cadres.

MD

Full

(e)

Appointed to posts in the cadres of ED/ZM and equivalent cadres and above.

[Chairman]

[Notified in Gazette of India, Part II Section 3 sub-section (i), G.S.R. 668(E), dated 26.10.2006.]

Full

N.B.: Officer-in-charge means the officer who is in charge of the office in which the employee is working.

[Schedule - V]

[Notified in Gazette of India, Part-III Section 4 dated 7.8.1971.]

Travelling & Daily Allowances (See Reg. 79)

(Please see Annexure-7)

1. Tours: - (1) Employees of the Corporation proceeding on tour in India shall be entitled to travel by train in the class of accommodation as given below, if the places are connected by train:-

Employees belonging to

Class of Accommodation Train

(i) CLASS I:

(a) Zms and above

ACC

(b) Dy. Zms/Sr. D.Ms and Dms

drawing a basic pay of Rs. 1700/- and above

I

(c) Other officer excluding AAOs

and ABMs

I

(d) AAOs and ABMs

I

(ii) [CLASS II:]

[Notified in Gazette of India, Part-III Section 4 dated 31.05.1975.]

(a) Grade I Development Officers

with a basic pay of Rs. 350/- p.m. or over

I Class

(b) Grade II Development Officers

and Grade I Development Officers with a basic pay of less than

Rs. 350/- p.m.

II Class (New) with Sleeper per berth for night journeys

(iii) [CLASS III:]

[Notified in Gazette of India Part III Section 4 dated 31.05.1975.]

(a) All Class III employees with

a basic pay of Rs. 350/- p.m. and above

I Class

(b) All Class III employees with

a basic pay of less than Rs 350/- p.m.

II Class (New) with sleeper for night journeys

(iv) [ALL CLASS IV EMPLOYEES]

[Notified in Gazette of India, Part-III Section 4 dated 31.5.1975.]

II Class (New) with sleeper berth for night journeys

(2)

Notwithstanding anything contained in sub-clause (1) officers of the rank of Divisional Manager and above drawing a basic pay of Rs. 1,700 or more may travel by air by ordinary/economy class.

Provided that the Managing Director, the Executive Director or the Zonal Manager or the Chief (A&I) may permit any other employees to travel by air, if necessary.

(3)

Where the places are connected only by steamer, an employee may travel by steamer, by first class if he is an employee in Class I of the rank of Administrative Officer or above; by II Class if he is any other employee in Class I, II or

III and as deck passenger if he is an employee in Class IV.

(4)

Where the places are connected not by train but by road, an employee will be entitled to travel by road -

(a)

if he is an officer of Class I, by I Class in bus wherever it is provided or by taking a single seat in taxi where such facilities are available;

(b)

if he is a Development Officer, by bus, and where the bus two classes of accommodation, by the upper class;

(c)

if he is an employee in Class III or IV, by bus, and where the bus has two classes of accommodation by the lower class.

(5)

The Managing Director or the Executive Director or the Zonal Manager or Chief (A&I) may allow an employee to travel by a class higher than that by which he is entitled to travel by train if the circumstances of the case so require. In every such case the reasons will be recorded in writing.

(6)

[Notwithstanding anything contained in the item (ii)(b) of Sub-clause I where the journey undertaken by a Development Officer on duty involves night travel, travel by I Class will be admissible for the entire journey.

(7)

In respect of employees in Class III travelling on duty whose basic pay is less than Rs. 350/ p.m. where the journey undertaken involves night travel, travel by I Class will be admissible for the entire journey. Where the journey is required to be made by any Class III employees on duty by steamer/bus and where only two classes upper and lower are available, journey will be permitted by the upper class.]

[Notified in Gazette of India, Part-III Section 4 dated 31.5.1975.]

2. [Daily Allowance and Incidentals:

[Notified in Gazette of India, Part-III Section 4 dated 28.8.1976.]

- (1) Daily allowance at the following rates will be payable to employees on tour on official business:]

Rank

Rate (Rs.)

Subordinate Staff

10.00

Other employees

Drawing pay upto Rs. 340/-

15.00

Drawing pay between Rs. 341/- and

Rs. 800/-

20.00

Drawing pay between Rs. 801/- and

Rs. 1500/-

25.00

Drawing pay above Rs. 1500/-

30.00

Note: "Pay" means basic pay and shall include special pay.

(2)

For employees visiting Bombay, Calcutta, Delhi or Madras on tour the daily allowance admissible for the period of their halt at these places shall be at the rates set out above increased by Rs. 5/-.

(3)

For employees visiting the following cities, the above rates of daily allowance will be increased by Rs. 3/- for the period of their halt at the places:

1. Ahmedabad

6. Lucknow

11. Shilong

2. Bangalore
7. Nagpur
12. Simla
3. Darjeeling
8. Nainital
13. Srinagar
4. Hyderabad (Dn.)
9. Ootacamund
5. Kanpur
10. Poona
- (3A)

In cases where employees belonging to Class I stay in hotels in the cities specified herein, actual expenses incurred by them on board and lodging plus 20% thereof towards out of pocket expenses may be reimbursed subject to the provisions contained in this sub-clause.

Limits per day (inclusive of 20% of actual expenses towards out of pocket expenses) in respect of tours to

Class A Cities

Class B Cities

Class C Cities

Rs.

Rs.

Rs.

(a) Officers of the rank of Senior Divisional Manager/Dy.

Zonal Manager and above

150

125

100

(b) Other Officers drawing basic pay.

Upto Rs. 1000/-

50

40

30

Between Rs. 1001/- and Rs. 1299/-

60

50

40

Rs. 1300/- and above

100

75

55

Note:(1) The provisions of this clause shall not apply to employees other those belonging to Class I.

(2)

Reimbursement for stay in a hotel as indicated above will be allowed to a Class I Officer in the specified cities only when the facility of Guest House accommodation provided by the Corporation is not available at the place. Whenever a Class I Officer stays in a hotel in the cities specified and claims reimbursement under this sub-clause, he shall furnish a certificate to the effect that no accommodation was available in the Guest House.

(3)

For the purpose of this sub-paragraph:

(i)

Class A cities shall mean, the cities mentioned in sub-clause (2) ;

(ii)

Class B cities shall mean the place mentioned in sub-clause (3);

(iii)

[Class C cities shall mean the following places, namely:

[Notified in Gazette of India, Part-III Section 4 dated 12.11.1977.]

Agra, Ajmer, Allahabad, Amritsar, Asansol, Baroda, Bhubaneswar, Bokarao, Chandigarh, Cochin, Coimbatore, Cuddapah, Cuttack, Dhanbad, Dharwad, Durgapur, Gangtok, Gauhati, Gwalior, Indore, Jabalpur, Jaipur, Jalpaiguri, Jamshedpur, Jullundur, Kali,pong, Kozhikode, Ludhiana, Machilipatnam, Madurai, Meerut, Muzaffarpur, Nasik, Patna, Raipur, Rajkot, Ranchi, Rourkela, Salem, Satara, Sholapur, Silchar, Siliguri Surat, Thanjavur, Tiruchirapalli, Trivandrum, Udipi, Varnasai and Visakhapatnam.]

(4)

In case where reimbursement under this sub-clause is allowed no daily allowance as specified under sub-clauses, (1), (2) and (3) shall be admissible.

(3B)

[Notwithstanding anything contained in sub-clause 3(A) if the Managing Directors while on tour prefer to stay in hotel at any place, the actual expenses may be reimbursed to them for stay in a single room inclusive of diet only. Where reimbursement under this sub-clause is allowed, no claim shall be admissible under sub-clause (1), (2), (3) or 3(A).]

[Notified in Gazette of India, Part-III Section 4 dated 4.6.1977.]

(4)

Daily allowance at the full rates will be payable for first 30 days of halt at any one station. Daily allowance at half rates will be paid for a further period not exceeding 60 days subject to special sanction by Zonal Manager, Chief (A&I) or Director(Personnel). The same applied to enhanced daily allowance applicable to the cities mentioned in sub-clauses (2) and (3) above.

Note: Relaxation of provisions in this sub-paragraph may be permitted in individual cases under special circumstances by Director(Personnel) if so authorised by the Chairman.

(5)

Incidentals: An employee on tour shall be entitled to actual expenses subject to a maximum of an amount equal to daily allowances for half a day for each completed journey.

3. Transfers: - (1) Employees on transfer from one place in India to another are also entitled to travel in the same class by train or steamer as provided in sub-clause (1) or sub-clause (3) of Clause 1 above.

(2)

Families of employees on such transfer will also be entitled to travel in the same class by train or steamer as the employees themselves.

(3)

Air travel on transfer will be allowed only in the case of employees not below the rank of Zonal Manager and their families.

[Provided that Executive Director(P) may permit air travel on transfer in respect of employees of the rank of Senior Divisional Managers/Divisional Managers.]

[Notified in Gazette of India, Part-II Section 3 sub-section (i) dated 18.6.1999.]

(4)

Where an employee belonging to Class III or IV is transferred outside the Zone where he is working and he has to make another trip to his original place for bringing the members of his family, he will be allowed two extra fares, that is one fare each way for this purpose.

Note: For the purpose of this schedule "Family" of an employee means wife and dependants. Dependants mean legitimate children, step children, parents, brothers and unmarried or widowed sisters who are residing with and dependent upon the employee. An adopted child shall be considered to be a legitimate child if under the personal law of the employee adoption is legally recognised as conferring on it the status of natural child. Any other relative dependent upon the employee shall not be considered as a dependant for the purpose of this schedule.

(5)

Incidentals: - (a) Class I Officers: A Class I Officer travelling on transfer within India shall be entitled to the following incidentals:

Posts held by the Officer at the place from

which he is transferred

Distance in Kilometres between the old and the new headquarters

Upto 250

251-750

Above 750

Rs.

Rs.

Rs.

Class I Officer in posts for which minimum of the grade is Rs.

770/- or less

150

225

300

Class I Officers in posts for which the minimum of the grade

is more than Rs. 770/- but less than Rs. 1600/-

175

250

325

Class I Officers in posts for which the minimum of the grade

is Rs. 1,600/- and over

200

275

350

(b)

Other Classes of employees: An employee travelling on transfer by rail is entitled to draw two fares of the class by which he is entitled to travel. An employee travelling by air is entitled to draw the incidentals which would have been admissible to him had he performed the journey by rail. An employee travelling by steamer shall be entitled to draw twice the lower fare (where the Steamship Company charges lower and higher fares-without or with diet or otherwise) of the class by which he is entitled to travel. An employee travelling by road will be entitled to incidentals to which he would have been entitled had he performed the journey by train.

(c)

In case of transfer from India to a foreign territory and vice versa half a month's basic pay will be allowed as incidentals subject to a minimum of Rs. 250/- and also one fare of the class by which he is entitled to travel for each journey required to be performed by train. For detentions at intermediate points for taking the connecting plane, steamer or train as the case may be, daily allowance at the usual rate will be payable for the employee and his family subject to a maximum of seven days for every completed journey.

4. Time Limit for the Family to Join the Employee: - To enable an employee to claim the fares for the members of the family and the dependants, they may follow him within six months from the date of his handing over charge at his old station, or precede him to his new headquarters any time after the order of transfer has been issued. The cost of transporting personal belongings will also be allowed only if it is completed within this period. The Zonal Manager or Director(Personnel) or Chief(A&I) may relax the time limit upto nine months. Further relaxation in the time limit may be permitted by Director(Personnel), if specifically authorised by the Managing Director in this behalf.

5. Employees Recalled from Leave: - An employee recalled from leave will be entitled to draw travelling allowance for the journey from the place of leave to the headquarters provided the period by which leave is curtailed is not less than 14 days, but no halting allowance will be admissible for the journey period.

6. Relaxation: - The Managing Director may permit relaxation of the foregoing rules in individual cases under special circumstances.

Note : Consequent upon an amendment to the Life Insurance Corporation Act, 1956, in the year 1981, in exercise of the powers conferred upon them by Section 48 of the said Act, the Central Govt. has made Life Insurance Corporation of India (Daily Allowance and Hotel Charges to employees on tour) Rules, 1989, and the same are applicable to the

employees of Corporation.

The said Rules are updated upto 8th September, 2005, and are shown as Annexure No. 7.

[Schedule - VI]

[Notified in Gazette of India, Extraordinary, Part-II Sec. 3 sub-sec. (i) dated 19.91.1995]

Form

Life Insurance Corporation of India

Statement of Immovable Property for the Year - (as on 1st January)

1. Name of the Officer/Officials (in full) _____

2. Present Post held _____

3. Place of Posting _____

4. Present Pay _____

Name of the Distt. Sub-Division Taluka and Village in which

property is situated

Name and details of

If not in own name, state in whose name held and his/ her

relationship to the Govt. servant

How acquired whether by purchase lease* mortgage, inheritance,

gift or other wise with date of acquisition and name with details

of persons from whom acquired

Annual income from the property

Remarks

Housing & other lands, buildings

**Present Value

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Signature _____

Date _____

* In-applicable clause to be struck out

** In case where it is not possible to assess the value accurately the approximate value in relation to present conditions may be indicated.

Includes short-term lease also

Note - The declaration form is required to be filled in and submitted by every employee of the Life Insurance Corporation of India belonging to Class I, II and III under regulation 35-A of LIC & (Staff) Regulations 1960 of first appointment to the service and thereafter at the interval of every twelve months giving particulars of all immovable property owned acquired or inherited by him on lease or mortgage either in his own name or in the name of any Member of his family or in the name of any other person.

Foot Note: The principal Regulations were published in the Gazette of India on 23.07.60 and subsequently amended on 20.01.62, 01.12.62, 14.04.62, 30.03.63, 03.08.63, 28.12.63, 01.02.64, 02.05.64, 22.08.64, 03.10.64, 16.01.65, 05.06.65, 19.06.65, 17.07.65, 11.09.65, 06.11.65, 27.11.65, 08.01.66, 19.02.66, 26.02.66, 26.03.66, 23.04.66, 18.06.66, 03.09.66, 10.09.66, 01.10.66, 22.10.66, 31.12.66, 18.02.67, 11.02.67, 01.04.67, 15.04.67, 29.04.67, 22.07.67, 19.08.67, 30.07.67, 02.03.68, 30.03.68, 08.06.68, 15.06.68, 08.03.69, 12.04.69, 26.04.69, 14.06.69, 19.07.69, 23.01.71, 07.08.71, 19.06.71, 07.10.72, 18.11.72, 16.12.72, 04.05.74, 31.05.75, 13.12.75, 22.04.76, 12.06.76, 10.07.76, 28.08.76, 21.01.77, 23.04.77, 04.06.77, 21.07.77, 12.11.77, 01.04.78, 26.05.78, 31.05.78, 01.07.78, 07.10.78, 04.11.78, 19.12.78, 08.12.79, 10.05.80, 23.12.83, 10.05.88 and vide G.S.R.No.1166(E) dated 09.12.88, 855(E) dated 25.09.89, 745(E) dated 13.12.93, 598(E) dated 30.06.95, 644(E) dated 19.09.95, 262(E) dated 22.05.98, G.S.R.No. _____ dated 23.04.99, 444(E) dated 18.06.99, Corrigenda dated 10.08.99 and GSR No.554(E) dated 22.6.2000.

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Translation